No. 98-1161

IN THE

Supreme Court of the United States

OCTOBER TERM, 1998

Supreme Court, U.S.
FILED
AUG 16 1999
OFFICE OF THE CLERK

THE CITY OF ERIE, PENNSYLVANIA, JOYCE A. SAVOCCHIO, CHRIS E. MARAS, MARIO S. BAGNONI, ROBERT C. BRABENDER, DENISE ROBISON, AND JAMES N. THOMPSON, ALL IN THEIR OFFICIAL CAPACITIES,

PETITIONERS

v.

PAP'S A.M., T/D/B/A "KANDYLAND,"

RESPONDENT

ON WRIT OF CERTIORARI
TO THE SUPREME COURT OF PENNSYLVANIA

JOINT APPENDIX

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COUNSEL FOR RESPONDENT

PETITION FOR CERTIORARI FILED JANUARY 16, 1999
CERTIORARI GRANTED MAY 17, 1999

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COURT OF COMMON PLEAS OF ERIE COUNTY, PENNSYLVANIA

1994-60059 PAP'S AM, AL (vs) THE CITY OF ERIE, AL

Reference No:	Filed: 10/14/1994
Case Type: EQUITY	Time: 2:41
Judgment: .00	Execution Date 0/00/0000
Judge Assigned:	Jury Trial. . . .
Disposed Desc.:	Disposed Date. 0/00/0000
–Case Comments –	Higher Crt. 1.: 445 CD 1995 Higher Crt 2. :

General Index		Attorney Info
PAPS AM 1402 STATE STREET ERIE PA 16501	PLAINTIFF	FRIEDMAN PHILIP B, ESQ
KANDYLAND 1402 STATE STREET ERIE PA 16501	PLAINTIFF	FRIEDMAN PHILIP B, ESQ
ERIE CITY OF 626 STATE STREET ERIE PA 16501	DEFENDANT	KARLE GREGORY A, ESQ VILLELLA GERALD J, ESQ
SAVOCCHIO JOYCE A 626 STATE STREET ERIE PA 16501	DEFENDANT	KARLE GREGORY A, ESQ VILLELLA GERALD J, ESQ
MARAS CHRIS E 626 STATE STREET ERIE PA 16501	DEFENDANT	KARLE GREGORY A, ESQ VILLELLA GERALD J, ESQ

BAGNONI MARIO S 626 STATE STREET ERIE PA 16501	DEFENDANT	KARLE GREGORY A, ESQ VILLELLA GERALD J, ESQ
BRABENDER ROBERT C 626 STATE STREET ERIE PA 16501	DEFENDANT	KARLE GREGORY A, ESQ VILLELLA GERALD J, ESQ
ROBISON DENISE 626 STATE STREET ERIE PA 16501	DEFENDANT	KARLE GREGORY A, ESQ VILLELLA GERALD J, ESQ
THOMPSON JAMES N 626 STATE STREET ERIE PA 16501	DEFENDANT	KARLE GREGORY A, ESQ VILLELLA GERALD A, ESQ

Date	Entries
• • • •	
10/14/1994	COMPLAINT IN EQUITY W/ NOTICE TO PLEAD WITHIN TWENTY (20) DAYS. F/FRIEDMAN, ESQ
10/17/1994	PETITION FOR PRELIMINARY AND OR SPECIAL INJUNCTION: F/PHILIP B FRIEDMAN ESQ W/ RULE: RETURNABLE OCT 19, 94 AT 10 AM. S/MICHAEL T JOYCE, J
• • • •	
10/21/1994	OPINION AND ORDER: AND NOW, TO-WIT, THIS 21ST DAY OF OCTOBER, 1994, IT IS HEREBY ORDERED, ADJUDGED AND DECREED THAT THE PLAINTIFF'S

	REQUEST FOR PRELIMINARY INJUNC-TION IS DENIED. S/GEORGE LEVIN, J. NOTICE WAS GIVEN TO EACH PARTY/ COUNSEL OF RECORD BY ORDINARY MAIL ON 10/21/94.
• • • •	
12/14/1994	ORDER DTD 12-12-94 IT IS HEREBY ORDERED ADJUDGED AND DECREED THAT THE HEARING AND ARGUMENT IN THE ABOVE ENTITLED CASE IS RE-SCHEDULED FOR 12-21-94 @ 2:30 PM AS OPPOSED TO 12-28-94. S/GEORGE LEVIN, J. NOTICE GIVEN TO EACH PARTY/ COUNSEL OF RECORD BY ORDINARY MAIL ON 12-13-94.
• • • •	
1/18/1995	OPINION AND ORDER DTD 1/18/95, PLAINTIFF'S COMPLAINT AND REQUEST FOR A PERMANENT INJUNC-TION IS HEREBY GRANTED. DEFEN-DANT, BY & THROUGH THEIR AGENTS, ARE BARRED FROM ENFORCIN[ ] ORDI-NANCE 75-1994 & SAID ORDINANCE IS DECLARED UNCONSTITUTIONAL. PLAINTIFF'S REQUEST FOR ATTORNEY FEES IS DENIED. S/GEORGE LEVIN, J.
2/13/1995	NOTICE OF APPEAL TO COMMON-WEALTH COURT GIVEN BY ALL DEFEN-DANTS FROM ORDER DATED 1-18-95. THIS ORDER HAS BEEN ENTERED IN THE DOCKET AS EVIDENCED BY THE ATTACHED COPY; ORDER FOR TRAN-SCRIPT DIRECTED TO OFFICIAL COURT REPORTER TO PRODUCE CERTIFY AND FILE TRANSCRIPT IN THIS MATTER;

CERTIFICATE OF SERVICE OF FOREGOING NOTICE OF APPEAL ON 2-13-95 BY 1ST CLASS MAIL UPONP: [sic] PHILIP B FRIEDMAN ESQ, 319 W 8 ST, ERIE PA 16502; THOMAS AARON, CIVIL CT ADM, ERIE CO CRTHSE, ERIE PA 16501; HON GEORGE LEVIN, ERIE CO CRTHSE, ERIE PA 16501; OFFICE OF COURT STENOGRAPHER, ERIE CO CRTHSE, ERIE PA 16501. F/GREGORY A KARLE/GERALD J VILLELLA, ESQ

• • • •

2/14/1995 NOTICE OF APPEAL TO COMMONWEALTH COURT GIVEN BY PAP'S AM T/D/B/A KANDYLAND FROM ORDER ENTERED IN THIS MATTER DENYING COUNSEL FEES ON 1-18-95. THIS ORDER HAS BEEN ENTERED IN THE DOCKET AS EVIDENCED BY ATTACHED COPY. THE TRANSCRIPT HAS ALREADY BEEN ORDERED; SERVICE OF NOTICE OF APPEAL BY PERSONAL SERVICE ON 2-14-95 UPON: HON GEORGE LEVIN, ERIE CO CRTHSE, ERIE PA 16501; GERALD J VILLELLA ESQ, CITY SOLICITORS OFF, 505 MUNICIPAL BLDG., ERIE PA 16501; THOMAS AARON, CIVIL CT ADM, ERIE CO CRTHSE, ERIE PA 16501; GREGORY A KARLE ESQ, CITY SOLICITORS OFF, 505 MUNICIPAL BLDG, ERIE PA 16501; COURT REPORTERS OFF, ERIE CO CRTHSE, ERIE PA. F/PHILIP B FRIEDMAN, ESQ

• • • •

4/01/1996 IN THE COMMONWEALTH COURT OF PENNSYLVANIA NO. 445 AND 446 C.D.

1995 BEFORE: HON JOSEPH T DOYLE, HON DORIS A SMITH, JUDGES AND HON CHARLES P MIRARCHI JR, SR JUDGE. OPINION W/ ORDER DTD 3-27-96, THE ORDER OF THE COURT OF COMMON PLEAS OF ERIE COUNTY IS HEREBY REVERSED. S/JOSEPH T DOYLE, JUDGE

4/25/1996 SUPREME COURT OF PENNSYLVANIA NOTICE OF FILING PETITION FOR ALLOWANCE OF APPEAL FROM COMMONWEALTH COURT DKTS 445 & 446 C.D. 1995.

2/06/1997 IN THE SUPREME COURT OF PENNSYLVANIA ALLOCATUR NOTICE OF APPEAL DOCKET NO. 16 W.D. 1997 FROM CMMWLTH CT NO. 445 C.D. 1995.

IN THE SUPREME COURT OF PENNSYLVANIA ALLOCATUR NOTICE OF APPEAL DOCKET NO 17 W.D. 1997 FROM CMMWLTH CT NO. 446 C.D. 1995.

IN THE SUPREME COURT OF PENNSYLVANIA WESTERN DISTRICT ORDER DTD 1-28-97, THE PETITION FOR ALLOWANCE OF APPEAL IS HEREBY GRANTED, BUT LIMITED TO THE FOLLOWING ISSUES: I. WHETHER THE ERIE CITY ORDINANCE IS UNCONSTITUTIONALLY OVERBROAD; III. WHETHER THE ORDINANCE VIOLATES THE RIGHT

TO FREEDOM OF EXPRESSION AS GUARANTEED BY THE FIRST AND FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION AND ARTICLE I, SECTION 7 OF THE PENNSYLVANIA CONSTITUTION. MADAME JUSTICE NEWMAN DID NOT PARTICIPATE IN THE CONSIDERATION OR DECISION OF THIS MATTER. S/AMY J CERASO ESQ, DEP PRO.

12/09/1998 IN THE SUPREME COURT OF PA WESTERN DISTRICT @ NO. 016 & 017 DKT '97 OPINION BY MR JUSTICE CAPPY DTD 10-21-97.

12/09/1998 IN THE SUPREME COURT OF PA WESTERN DISTRICT @ NO. 016 & 017 CONCURRING OPINION BY MR JUSTICE CASTILLE DTD 10-21-98.

* * * *

COMMONWEALTH COURT DOCKET ENTRIES

0445 C.D. 1995 PAP'S A.M. v. THE CITY OF ERIE et al

APPEAL Erie FILED DATE: 02/14/95

AMOUNT PAID: 55.00 WAIVED: CASE TYPE: Civil Action Equity

APPLD ORDER DATE: January 18, 1995

CLOSE DATE: March 27, 1996

ALLOCATUR DOCKET #0230 WAL96

CONSOLIDATED/RELATED WITH NO.: C 0446CD95

LOWER COURT # 60059 OF 94 Honorable George Levin

DISPOSITION: Reversed DATE: March 27, 1996

PARTIES	
PAP'S A.M. t/d/b/a KANDYLAND	Appellant
THE CITY OF ERIE	
JOYCE A. SAVOCCHIO	
CHRIS E. MARAS	
MARIO S. BAGNONI	
ROBERT C. BRABENDER	
DENISE ROBISON	
JAMES N. THOMPSON	Appellee

COUNSEL	
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Gerald J. Villella 814-870-1230 FAX: 32814 City Solicitor's Office 626 State Street Erie PA 16501	Appellee
Gregory A. Karle FAX: City Solicitor's Office 505 Municipal Building Erie PA 16501	Appellee
Witold J. Walczak 412-681-7864 FAX: 62976 American Cilvil[sic] Liberties 237 Oakland Avenue Pittsburgh PA 15213-4090	Amicus Cur

*** DOCKET ENTRIES ***

02/14/95 Petition for Review/Notice of Appeal Filed

Cross Notice of Appeal to 446 C.D. 95.

* * * *

02/28/95 Order Filed

The cross-appeals at 445 C.D. 1995 & 446 C.D. 1995 are sua sponte consolidated. Morgan, S.J. order exit 3-1-95.

* * * *

09/28/95 Argument Scheduled

Tuesday, November 14, 1995, in Pittsburgh.

* * * *

03/27/96 Opinion Filed

Reversed.
Doyle, J.
(25 pages)

01/28/97 Filed – Other

In the Supreme Ct., (From data sheet), PFAOA granted but limited to the following issues: I. Whether the Erie City Ordinance is unconstitutionally overbroad. III. Whether the Ordinance violates the right to freedom of expression as guaranteed by the First and Fourteenth Amendments to the U. S. Constitution. (PC). See allocatur screen.

*** ALLOCATUR ***

ALLOC APPLICATION TYPE: Pet. Allow. of Appl.

APPLICATION DATE: April 23, 1996
ALLOC DKT#. 0230 WAL96

REC TO SPRM CT.: February 6, 1997
APPEAL DKT#: 00 16 WAP97

NOTE: Petition of PAP's A.M. t/d/b/a Kandyland. Granted

NOTE: (Limited) 01/28/97. See 01/28/97.

*** OPINION ***

FILED DATE: March 27, 1996 J: Joseph T. Doyle Judge

OPINION: PAN DATE ARG/SUB: November 14, 1995

OPINION TYPE: Majority – Reported

* * * *

*** CAPTION ***

PAP'S A.M. t/d/b/a KANDYLAND, Appellant
Appellant

v.

THE CITY OF ERIE, JOYCE A. SAVOCCHIO, CHRIS E. MARAS, MARIO S. BAGNONI, ROBERT C. BRABENDER, DENISE ROBISON, and JAMES N. THOMPSON, in their official capacities

COMMONWEALTH COURT DOCKET ENTRIES

0446 C.D. 1995 THE CITY OF ERIE et al v. PAP'S A.M.
APPEAL Erie FILED DATE: 02/13/95
AMOUNT PAID: 55.00 WAIVED: CASE TYPE:
Civil Action Equity
APPLD ORDER DATE: January 18, 1995
CLOSE DATE: March 27, 1996
ALLOCATUR DOCKET #0231 WAL96
CONSOLIDATED/RELATED WITH NO.: C 0445CD95

LOWER COURT # 60059 OF 94 Honorable George Levin

DISPOSITION: Reversed DATE: March 27, 1996

PARTIES

THE CITY OF ERIE

JOYCE A. SAVOCCHIO

CHRIS E. MARAS

MARIO S. BAGNONI

ROBERT C. BRABENDER

DENISE ROBISON

JAMES N. THOMPSON — Appellant

PAP'S A.M. t/d/b/a KANDYLAND — Appellee

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Philip B. Friedman — Appellee
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319 West 8th Street
Erie PA 16502

*** DOCKET ENTRIES ***

02/13/95	Petition for Review/Notice of Appeal Filed
* * * *	
02/28/95	Order Filed
	The cross-appeals at 445 C.D. 1995 & 446 C.D. 1995 are sua sponte consolidated. Morgan, S.J. order exit 3-1-95.
* * * *	
09/28/95	Argument Scheduled
	Tuesday, November 14, 1995, in Pittsburgh.
* * * *	
03/27/96	Opinion Filed
	Reversed. Doyle, J. (25 pages)
01/28/97	Filed – Other

In the Supreme Ct., (from data sheet), PFAOA Granted But Limited to the following issues: I. Whether the Erie City Ordinance is unconstitutionally overbroad. III. Whether the Ordinance violates the right to freedom of expression as guaranteed by the First and Fourteenth Amendments to the U. S. Constitution. (PC). See allocatur screen.

*** ALLOCATUR ***

ALLOC APPLICATION TYPE: Pet. Allow. of Appl.

APPLICATION DATE: April 23, 1996
ALLOC DKT#. 0231 WAL96

REC TO SPRM CT.: February 6, 1997
APPEAL DKT#: 0017 WAP97

NOTE: Petition of PAP's A.M. t/d/b/a Kandyland. Granted

NOTE: (Limited) 01/28/97. See 01/28/97.

*** OPINION ***

FILED DATE: March 27, 1996 J: Joseph T. Doyle Judge
OPINION: PAN DATE ARG/SUB: November 14, 1995
OPINION TYPE: Majority – Reported

---

* * * *

*** CAPTION ***

PAP'S A.M. t/d/b/a KANDYLAND

v.

THE CITY OF ERIE, JOYCE A. SAVOCCHIO, CHRIS E. MARAS, MARIO S. BAGNONI, ROBERT C. BRABENDER, DENISE ROBISON, and JAMES N. THOMPSON, in their official capacities, Appellant
Appellants

SUPREME COURT OF PENNSYLVANIA

R: A/G/13728 **DOCKET NUMBER 0016 W.D. APPEAL DOCKET 1997** 05/26/99

PAP'S A.M. t/d/b/a KANDYLAND

APPELLANT

V.

THE CITY OF ERIE, JOYCE A. SAVOCCHIO, CHRIS E. MARAS, MARIO S. BAGNONI, ROBERT C. BRABENDER, DENISE ROBINSON [sic] and JAMES N. THOMPSON, in their official capacities

APPELLEES

Letter "X" indicates an Appended Docket: (X)

SEE NO.: 00 17 W.D. Appeal Docket 1997

SESSION DATA

ARGUED/SUBMITTED: (A)

JOURNAL NUMBER: 142/97 **DISPOSITION:** Reversed – 10/21/98

DATE ARGUED: 09/16/97

PARTIES ADVISED: 10/21/98

ORDER:

REARG. FILED: **REARGUED:** **REARG.J.NO.:**

DISPOSITION: -
PARTIES ADVISED:

ORDER:

RECORD REMITTED: 12/07/98 **DISPOSAL DATE:**

VOTE

AUTHOR: CAPPY, J.

FLAHERTY	-MO	ZAPPALA	-CIR
CAPPY	-MO	CASTILLE	-CO
NIGRO	-MO	NEWMAN	-DNP
SAYLOR	-MO		

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SUPERIOR/COMMONWEALTH COURT INFORMATION

NAME: COMMONWEALTH

DOCKET NUMBER: 0445 C.D. 95
DATE: 03/27/96 REARGUMENT DENIED:
JUDGE(S): DOYLE, Smith, Mirarchi, S.J., JJ.
ACTION: Order Reversed

TRIAL COURT/AGENCY INFORMATION

NAME: CCP COUNTY: Erie
NUMBER: 60059 of 1994 DIVISION: Civil
DATE: 01/18/95

JUDGE: Honorable Shad Collelly,[sic] A.J.
ACTION: Order entered
NOTICE OF APPEAL FILED: REARGUMENT DENIED:

SUPREME COURT INFORMATION

APPEAL FROM: Order of the Commonwealth Court at No. 0445 C.D. 95 entered 3/27/96 reversing the Order of the Court of Common Pleas of Erie County, Civil Division, at No. 60059 of 1994 entered 1/18/95

NATURE OF CASE: CONSTITUTIONALITY OF STATUTE
TYPE OF CASE: Granted Allocatur

NOTICE OF APPEAL FILED BELOW:

NOTICE OF APPEAL DOCKETED IN SUPREME COURT: 01/28/97

PROBABLE JURISDICTION NOTED:

ALLOCATUR ALLOWED: 01/28/97

AT NUMBER: 0230WAL96

ALLOCATUR DISPOSITION: AND NOW, this 28th day of January, 1997, the Petition for Allowance of Appeal is hereby GRANTED, BUT LIMITED to the following issues:

I. Whether the Erie City Ordinance is unconstitutionally overbroad.

III. Whether the Ordinance violates the right to freedom of expression as guaranteed by the First and Fourteenth Amendments to the United State [sic] Constitution and Article I, section 7 of the Pennsylvania Constitution.

Madame Justice Newman did not participate in the consideration or decision of this matter. PC

ARGUED/SUBMITTED: A

ORIGINAL RECORD FILED: 01/12/97
RECORD CONTENT: 3 Parts

* * * *

ADDITIONAL DOCKET ENTRIES

* * * *

10/21/98 – OPINION – The order of the Commonwealth [C]ourt below is reversed. Madame Justice Newman did not participate in the consideration or decision of this matter. Mr. Justice Castille file[ ] a concurring opinion in which Mr. Justice Zappala joins.

* * * *

[Undated] – Petition For a Writ Of Certiorari was filed in the United States Supreme Court January 19, 1999 and place[ ] on the docket January 21, 1999 as No. 98-1161.

05/19/99 Letter stating the United States Supreme Court granted certiorari, filed.

05/25/99 Received Original Record for the United State[ ] Supreme Court.

SUPREME COURT OF PENNSYLVANIA

R: A/G/13728 **DOCKET NUMBER 0017 W.D. APPEAL DOCKET 1997 05/26/99**

PAP'S A.M. t/d/b/a KANDYLAND

APPELLANT

V.

THE CITY OF ERIE, JOYCE A. SAVOCCHIO, CHRIS E. MARAS, MARIO S. BAGNONI, ROBERT C. BRABENDER, DENISE ROBINSON [sic] and JAMES N. THOMPSON, in their official capacities

APPELLEES

Letter "X" indicates as Appended Docket: (X)

SEE NO. 0016 W.D. Appeal Docket 1997

SESSION DATA

ARGUED/SUBMITTED: (A)

JOURNAL NUMBER: T42/97 **DISPOSITION:** Reversed – 10/21/98

DATE ARGUED: 09/16/97 **PARTIES ADVISED:** 10/21/98

ORDER:

REARG. FILED: REARGUED: **REARG.J.NO.:**
DISPOSITION: –
PARTIES ADVISED:

ORDER:

RECORD REMITTED: 12/07/98 **DISPOSAL DATE:**

VOTE

AUTHOR: CAPPY, J.

FLAHERTY	-MO	ZAPPALA	-CIR
CAPPY	-MO	CASTILLE	-CO
NIGRO	-MO	NEWMAN	-DNP
SAYLOR	-MO		

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SUPERIOR/COMMONWEALTH COURT INFORMATION

NAME: COMMONWEALTH
DOCKET NUMBER: 0446 C.D. 95
DATE: 03/27/96 REARGUMENT DENIED:
JUDGE(S): DOYLE, Smith, Mirarchi, S.J., JJ.
ACTION: Order Reversed

TRIAL COURT/AGENCY INFORMATION

NAME: CCP COUNTY: Erie
NUMBER: 60059 of 1994 DIVISION: Civil
DATE: 01/18/95
JUDGE: Honorable Shad Connelly, A.J.
ACTION: Order entered
NOTICE OF APPEAL FILED: REARGUMENT DENIED:

SUPREME COURT INFORMATION

APPEAL FROM: Order of the Commonwealth Court at No. 0446 C.D. 95 entered 3/27/96 reversing the Order of the Court of Common Pleas of Erie County, Civil Division, at No. 60059 of 1994 entered 1/18/95

NATURE OF CASE: CONSTITUTIONALITY OF STATUTE

TYPE OF CASE: Granted Allocatur

NOTICE OF APPEAL FILED BELOW:

NOTICE OF APPEAL DOCKETED IN SUPREME COURT: 01/28/97

PROBABLE JURISDICTION NOTED:

ALLOCATUR ALLOWED: 01/28/97
AT NUMBER: 0231 WAL96

ALLOCATUR DISPOSITION: AND NOW, this 28th day of January, 1997, the Petition for Allowance of Appeal is hereby GRANTED, BUT LIMITED to the following issues:

I. Whether the Erie City Ordinance is unconstitutionally overbroad.

III. Whether the Ordinance violates the right to freedom of expression as guaranteed by the First and Fourteenth Amendments to the United State [sic] Constitution and Article 1, section 7 of the Pennsylvania Constitution.

Madame Justice Newman did not participate in the consideration or decision of this matter. PC

ARGUED/SUBMITTED: A

ORIGINAL RECORD FILED: 02/12/97
RECORD CONTENT: 3 Parts

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* * * *

ADDITIONAL DOCKET ENTRIES

* * * *

10/21/98 –The order of the Commonwealth Court below is reversed. Madame Justice Newman did not participate in the consideration or

decision of this matter. Mr. Justice Castille files a concurring opinion in which Mr. Justice Zappala joins.

* * * *

[Undated] –Petition for A Writ of Certiorari was filed in the United States Supreme Court on January 19, 1999 and place[ ] on the docket January 21, 1999 as No. 98-1161.

05/19/99 Letter stating the United States Supreme Court granted certiorari, filed.

5/25/99 Received Original Record [for] the United States Supreme Court.

PAP'S A.M. t/d/b/a KANDYLAND	:	IN THE COURT OF COMMON PLEAS OF ERIE COUNTY, PENNSYLVANIA
VS	:	
THE CITY OF ERIE, JOYCE A. SAVOCCHIO, CHRIS E. MARAS, MARIO S. BAGNONI, ROBERT C. BRABENDER, DENISE ROBISON, and JAMES THOMPSON, in their official capacities	:	CIVIL DIVISION
	:	NO. 60059-1994

PARTIAL TRANSCRIPT OF INJUNCTION
(Start of hearing to start of videotape)

Proceedings held before the HONORABLE GEORGE LEVIN, in Courtroom C, Erie County Courthouse, Erie, Pennsylvania, on Wednesday, October 19, 1994, commencing at 10:15 a.m.

APPEARANCES:

PHILIP B. FRIEDMAN, Esquire, appearing on behalf of the Plaintiff

GREGORY A. KARLE, Esquire, and GERALD J. VILLELLA, Esquire, appearing on behalf of the Defendants

Sylvia M. Waid, RPR-CM – Official Court Reporter

[p. 2] P-R-O-C-E-E-D-I-N-G-S

(Whereupon, the following discussion occurred in chambers:)

THE COURT: Please place on the record who you are and who you represent, gentlemen.

MR. VILLELLA: Gerald Villella –

MR. KARLE: Greg Karle, K-A-R-L-E. We represent the city and the individually named city councilmen.

THE COURT: And the mayor.

MR. KARLE: And the mayor.

MR. VILLELLA: Gerald Villella for the same defendants.

MR. FRIEDMAN: I'm Philip Friedman. I represent the petitioner.

THE COURT: All right. I believe there's an offer of proof to something you want to offer, Mr. Friedman?

MR. FRIEDMAN: That's correct, Your Honor. This morning we will be playing a tape of a City Council meeting that occurred on September 28, 1994, which is the date on which this ordinance was enacted. Each of the respondent City Councilmen spoke at that time about their reasons for voting in favor of this ordinance. Applying the district court's decision in *Triplett Grille, Inc. versus Akron,* we will present this to show the intent of the legislative branch in adopting this [p. 3] particular ordinance. And you will see after reviewing this tape that their intent was to enact this strictly for morality purposes and for no other purpose, and it mirrors the intent of City Council in the *Triplett* case.

THE COURT: Counsel, will you stipulate that that's what it does?

MR. KARLE: No, Your Honor, we won't stipulate to that.

THE COURT: All right. Well, I'm going to allow it as evidence in the case. It's statements made by City Council members?

MR. FRIEDMAN: Yes.

THE COURT: Not any statements as to what anybody else said?

MR. FRIEDMAN: I won't play anything other than the City Council statements.

THE COURT: Do you have a copy of the transcript?

MR. FRIEDMAN: There is no transcript.

THE COURT: You didn't type it up at all?

MR. FRIEDMAN: No, I just received it yesterday afternoon, Judge.

THE COURT: We're going to allow that into evidence. I'm not saying what the effect will be of the evidence.

[p. 4] MR. VILLELLA: Those are almost never transcribed. They just videotape them and preserve them that way unless there's some need to transcribe it.

THE COURT: The Court will – after hearing the case today, the Court will make an effort to file the opinion today, but it might be almost impossible. We will file it no later than Friday at four p.m. In the meantime, the Court will be ordering the defendants not to enforce the ordinance until such time as the opinion is filed. I will say that on the record. Okay, let's get started.

MR. FRIEDMAN: Your Honor, for the record, do you want to put the findings of fact on at this time?

THE COURT: I'll do it out there.

MR. FRIEDMAN: Okay.

(Whereupon, discussion in chambers concluded at 10:19 a.m. and proceedings continued in open court at 10:25 a.m. as follows:)

THE COURT: For the record, for those in attendance, the Court will endeavor to get this opinion out as quickly as possible, hopefully by today, but I'm going to have to have some latitude on that. It will be no later than Friday. In the meantime I'm going to be ordering the city not to enforce that until sometime Saturday if, in fact, I rule in your favor. [p. 5] I do not want to give a product which is not a valid product. The only way I can do it is give myself some time. We've been working on it the last two days, but obviously we haven't heard the arguments yet, so I don't know where I'm going to rule. The mere fact that I'm ordering the city not to enforce it until Friday say at four p.m. when I get the opinion out in no way should be considered that I'm going to rule in your favor or rule the other way, but it's just something to give me a little leeway time to get the proper product out, work product out.

I have received the findings of fact which I believe counsel have agreed on and will make part of the record, and they are as follows: The petitioner, Pap's A.M., is the owner of a business known as Kandyland, spelled with a

K. The business is located at 1402 State Street in the City of Erie. Is that agreeable, counsel?

MR. KARLE: Yes.

MR. FRIEDMAN: It is, Your Honor.

THE COURT: Okay. As a matter of fact, I'll read them all and go over them. If there's any problems, fine.

Petitioner's business is located in the commercial area of the City of Erie. The petitioner provides entertainment to its customers in the form of nude dancing. The petitioner does not serve alcoholic beverages on its premises, but invites and allows people to bring alcohol to their premises.

On September 28, 1994 the City Council of the City of [p. 6] Erie enacted Ordinance Number 75-1994. The ordinance was signed by Mayor Savocchio on September 30, 1994. It is scheduled to become effective on October 20, 1994. The ordinance is attached as a stipulation. The ordinance, which is attached as a stipulation, is the ordinance which we'll make part of the record.

On October 14, 1994, the petitioner filed a complaint in equity against the above-named defendants. On October 17th the petitioner filed a motion for preliminary and/or special injunction with this Court.

Are there any other facts anybody wishes to make part of the record?

MR. FRIEDMAN: No, Your Honor.

THE COURT: Mr. Villella?

MR. VILLELLA: Not at this point, no.

MR. KARLE: No.

THE COURT: Okay, fine. I guess then do you want to move forward, Mr. Friedman, please?

MR. FRIEDMAN: Very well, Your Honor. Your Honor, at this time we have on the record the basic facts of this case. The basic facts are not that complex. There are a lot of legal determinations which have to be made by the Court, and the Court has the benefit of our briefs to make that determination.

THE COURT: As I said in chambers, and I [p. 7] really mean it, the briefs I received in this in a relatively short time from both sides were two of the best briefs I've had the opportunity to review.

MR. FRIEDMAN: Thank you, Your Honor. Your Honor, under the *Elrod* decision of the United States Supreme Court, when we deal with areas involving expression as protected by the First Amendment, those are – if those rights are infringed upon, that is a per se irreparable harm for which no compensation can be had. Clearly under the law as recognized even by the City of Erie, nude dancing and nudity is – is conduct that is protected by the First Amendment. Even in the *Barnes* decision the majority of the Court said, in fact eight of the nine justices said, that this is entitled to First Amendment protection, although there was disagreement as to how much First Amendment protection.

THE COURT: Well, maybe we can go – take one point at a time. Counsel, will you agree that freedom of the expression of rights is something for which a preliminary injunction can be issued?

MR. KARLE: That's correct. I think that's correct.

THE COURT: So we can cut through that.

MR. FRIEDMAN: Okay.

THE COURT: And I would agree with that concept, too.

[p. 8] MR. FRIEDMAN: Under –

THE COURT: It is not a case where you generally have to meet the other requirements. That doesn't mean you're entitled to preliminary injunction, but as to that requirement, that freedom of expression is involved, and clearly it's involved, no matter how slight it's involved, you are entitled to preliminary relief. Is that a fair statement?

MR. VILLELLA: That's the irreparable harm part of it.

THE COURT: Yes. I'm not saying that that's a final –

MR. VILLELLA: I understand.

THE COURT: I'm not saying that's final, but as to that test. We can save time arguing about that issue.

MR. FRIEDMAN: Under the Supreme Court's decision in *Schad versus Borough of Ephraim*, the burden then shifts to the government to justify its substantial restriction of protected activity. At this point in time then we have satisfied our burden. It is up to the City of Erie to show under the *Schad* decision, under the *O'Malley*

decision they have to now justify their conduct to the Court.

What we intend to present today is a tape of City Council's meeting from September 28, 1994. We're not going to show the entire meeting, but what we want to show is – are the statements made by the various City Council members regarding [p. 9] their rationale for enacting the statute. This is a clear indication of the legislative intent which the Court has to apply in this case.

THE COURT: What will be your offer of proof? Maybe the parties would agree to it. What is your offer of proof as to what they said?

MR. FRIEDMAN: The test going back to the *Barnes* case –

THE COURT: No, I'm asking what is your offer of proof as to the tape.

MR. FRIEDMAN: I just wanted to explain what I was doing.

THE COURT: I'm familiar –

MR. FRIEDMAN: Okay. In terms of my offer of proof, what this tape will show, Your Honor, is that this ordinance was enacted solely for morality purposes as seen by four members of City Council. It will clearly show that these four people reached a moral decision for their own religious purposes, or for whatever other purposes, decided that they themselves did not condone nudity or nude dancing. Based upon that and that alone they enacted this particular piece of legislation. That is what this tape will show.

THE COURT: Do you stipulate to that?

MR. VILLELLA: No.

MR. KARLE: No, Your Honor, we're not going [p. 10] to stipulate to that. I mean, we – we agree that he has a tape, we agree that City Councilmen will talk on the tape, and we agree that they're going to express some opinions.

THE COURT: But you're not going to agree –

MR. KARLE: That it's not controlling. Our position is that the legislative intent is embodied in the ordinance, it's made a preamble of the ordinance, and that is what is controlling and that is what should be examined as far as legislative intent is concerned, Your Honor.

THE COURT: With that in mind, let's move forward and let's watch the tape.

MR. FRIEDMAN: Thank you, Your Honor.

THE COURT: Are you going to make this an exhibit?

MR. FRIEDMAN: I am, Your Honor.

THE COURT: Plaintiff's Exhibit 1.

MR. FRIEDMAN: Yes. This tape, the tape that I have includes the entire council meeting from that day. I'm only going to be showing the part that's relevant to our determination. I can provide the Court with a copy of just this portion or a copy of the entire council meeting, whichever the Court desires.

THE COURT: I would assume maybe a copy of the – what do you gentlemen want?

MR. FRIEDMAN: The city has it. They're the [p. 11] ones that provided it.

MR. KARLE: Yes, we have it.

THE COURT: You have the tape?

MR. KARLE: Yes.

MR. VILLELLA: That's what we got.

THE COURT: All right. Let's just provide what's relevant, and if there's other portions that are not shown, counsel, then we would ask you to bring it forward.

MR. FRIEDMAN: May I start it, Your Honor?

THE COURT: Yes.

(Whereupon, the videotape was started.)

(Whereupon, this partial transcript is concluded.)

CERTIFICATION

I hereby certify that the proceedings and evidence are contained fully and accurately in the notes taken by me on the trial of the above cause, and that this copy is a correct partial transcript of the same.

/s/ Sylvia M. Waid
Sylvia M. Waid, RPR-CM
Official Court Reporter

The foregoing partial record of the proceedings upon the trial of the above cause is hereby approved and directed to be filed.

/s/ _____
George Levin, Judge

PAP'S A.M. t/d/b/a KANDYLAND	:	IN THE COURT OF COMMON PLEAS
VS	:	OF ERIE COUNTY,
THE CITY OF ERIE, JOYCE A. SAVOCCHIO, CHRIS E. MARAS, MARIO S. BAGNONI, ROBERT C. BRABENDER, DENISE ROBISON, and JAMES THOMPSON, in their official capacities	:	PENNSYLVANIA CIVIL DIVISION NO. 60059-1994

PARTIAL TRANSCRIPT OF INJUNCTION
(Videotape of Council Meeting of 9-28-94)

Proceedings held before the HONORABLE GEORGE LEVIN, in Courtroom B, Erie County Courthouse, Erie, Pennsylvania, on Wednesday, October 19, 1994.

APPEARANCES:

PHILIP B. FRIEDMAN, Esquire, appearing on behalf of the Plaintiff

GREGORY A. KARLE, Esquire, and GERALD J. VILLELLA, Esquire, appearing on behalf of the Defendants

Sylvia M. Waid, RPR-CM – Official Court Reporter

[p. 2] P-R-O-C-E-E-D-I-N-G-S

(The following transcript contains transcription of the videotape of Erie City Council Meeting only.)

THE COURT: If anybody cannot see, they're more than welcome to approach.

(Whereupon, the videotape played as follows:)

VOICE: We have ordinances for final passage. Council File 14,482. An ordinance. Amending Article 7 of

the Codified Ordinances of the City of Erie, General Offenses, by repealing the present Article 711, Indecency and Immorality, and substituting a new Article 711 to be titled Public Indecency, prohibiting certain conduct in public places, providing definitions relating thereto, and providing penalties for the violators thereof, including fines, imprisonment, and declaration of public nuisance, as appropriate. Motioned Mr. Thompson, second by Mr. Brabender. The Council File Ordinance 14,482, now known as Special File Ordinance Number 75-1994, be finally passed by City Council.

MR. MARAS: Mr. Chair – Mr. Chair, yeah. Jim, before we get into – I know you want the floor, Jim and other members. Mrs. Robison has a sickness in the family. Her in-laws are very sick out in California and couldn't be here [p. 3] tonight. I received a memo from Mrs. Robison this evening and request to read this just before the – we address this ordinance. So this is from Mrs. Robison for the public record.

"Robby and I are in California because his mother is seriously ill. I regret my absence from tonight's meeting, but I do want it recorded that I fully support the proposed ban on public indecency. It is not a new law, it is an updated, enhanced version of Article 711 of the Codified Ordinances. The value of this total nudity ban as added publicly reaffirms the commitment of its supporters to be guardians of the community standards of decency and respect long ago established in this family-oriented city. My concern is that it will become just another piece of yellowed paper languishing in an ordinance book like the

article it's replacing. City Council cannot enforce ordinances, but we have an obligation to monitor those who do, and that is a challenging part of tonight's vote."

Mr. Thompson?

MR. THOMPSON: Mr. President, to pick up on that and maybe to clarify some of this, I think it's rather interesting that no one picks up on the fact this ordinance is repealing an existing ordinance that's entitled "Indecency And Immorality," which dates back in the history of this city 128 years. And it's being replaced not with a nudity ordinance, but an ordinance that's being entitled Public Decency – Public Indecency, excuse me.

[p. 4] And exactly what Denise said in her letter, part of the problem is seeing that the ordinance is enforced. If anybody is aware of that, I am. I passed a noise ordinance. No one can ask more times than I have how many times it's been enacted, and it has been, I don't think sufficiently. But then again, when I hear people – Gail, you've said it won't be enforced anyway. I remember you people fighting drastically to have a cat licensing ordinance passed, and I don't hear any of you too concerned of how it's enforced, what's being happened with cat licenses.

But, you know, it was brought up earlier that this isn't a funny matter, and, you know, it isn't a funny matter. It's a very serious matter. This is an ordinance that was sent down by the mayor. It's supported by the Solicitor's Office. It's supported by the District Attorney's Office. And we've had the police chief assure us that it has his support and that he'll see that it's enforced. The

problem here is we are talking about community standards and public decency. We're not talking about nudity. We're not talking about the theater or art, which are all protected forms by the Constitution, by the interpretations of the Supreme Court of this country. We're talking about what is indecent and immoral.

The amazing thing is one of the places in question here was cited by the Pennsylvania Liquor Control Board for having indecent, lewd, and immoral entertainment with contact with the clients. That was by the State of Pennsylvania according to the [p. 5] state laws, which we are simply reaffirming. Somebody earlier said, "We don't have people running around the parks nude" and so forth, and no, we don't; but if we did, we don't have an ordinance that prohibits it, and this ordinance would.

But this ordinance specifically talks about indecent behavior, lewd and immoral. And if you look up lewd in the dictionary, it's lust, vulgar, worthless, obscene. And obscene if you look it up in the dictionary says it's indecent, repulsive, disgusting, and sexually exciting. That's what we're talking about. That's what we're prohibiting. We're not prohibiting nudity, we're prohibiting nudity when it's used in a lewd and immoral fashion.

The ordinance says public indecency, and it is very well-defined. Those of you who argue your rights are being taken away from you, there are many people who like to play Barbout, or throw dice, or whatever else. And whether it's behind closed doors, in private, or whatever, we've raided those places, we've arrested those people and sent them to prison, because it is against the law.

There is no right in the Constitution for indecency anywhere you can find it.

And this ordinance is backed up by a 1991 Supreme Court decision, the State of Illinois versus Barnes Theaters, which is very explicit, very upholdable in court.

And we are now talking about public access coming into Erie with television. We are simply affirming the community [p. 6] standards that have been established by our fathers and forefathers long before us that will also enable us to watch what goes on on public access.

It is live pornography. It is not acceptable in this city, has never been, and will never be. It's not a religious issue. It is part of government. It has been upheld by the Supreme Court of the state as well as the United States, and it is part of our job. Check your history and see. It is up to us to establish, reestablish the community standards for this community. That is one of the reasons we were elected, whether you happen to agree with us or not.

I think it's a very important thing that has to be done. You know, in 1977 an ordinance was passed on lewd entertainment in this city. Two members of this council now were on that body when it was passed in 1977. It wasn't considered taking away someone's right, but in their wildest dreams they didn't think that 20 years later we'd be where we're at, and that's why we have to have some redefinement of where we're at. But it isn't something new, it isn't something strange, it's standing up for what has built this community and made us what we are.

I'm very proud to sponsor it, happy to have the administration's support, and I'd ask my council members to vote for it. Thank you.

COUNCIL PRESIDENT: Thank you, Mr. Thompson. Any other member? Mr. Brabender?

[p. 7] MR. BRABENDER: Talk about community standards, I noticed a billboard going down Pittsburgh Avenue that the Church of the Covenant has that talks about community standards and community, family values. They also have run it on television, tremendous thing about family values. That's what we're talking about here is values of the community, what we stand for.

You know, as far as nudity goes, that's – it's in the eyes of the beholder sometime. I taught physical education for 31 years at Strong Vincent High School. I was in charge of all the swimming classes. Kids always swam in the nude until about 20 years later one person demanded to wear the suit, and so from then on everyone had to wear them. But no one ever thought of that as being lewd, indecent, because it wasn't. There's something took place.

The reason they didn't wear the suits, I better explain that, the girls wore suits because they had the dryers and the washing machines there, and after every class the girls would just throw the suit in there and it would be washed, and every time they went to the class they'd have a nice clean suit. The boys didn't have one. And so if they didn't wear – if they wore suits and they put on filthy suits and there was no way of getting it, the string and dirt and filth and everything would go into the

water, and so the Health Board told us we shouldn't do it till this later date.

[p. 8] But what I'm getting at is it wasn't indecent, it wasn't an immoral thing, and yet there was nudity. Oh, but this goes on in the places.

And you know, I think of an 18-year-old young person I have in class, I'd meet them on a Friday afternoon, I taught thousands of them, and then when I think of them going to the place along with 21, 25, 35 year old people who are drinking here, they're not allowed to drink at 18 years of age, but they can frequent some of these clubs along with them. I don't know if that's a real wholesome atmosphere.

I was never pressured by anyone. I happen to be of the Roman Catholic faith, and I don't think Bishop Trautman would know me if he saw me walking down the street. It wouldn't have anything to do with it. Or any of the other two emuses[1] from the Lutheran and Episcopal faith. That has nothing to do with it.

I personally had listened to all the discussion, and I personally feel that I – I represent support the ordinance, and that's why I'll vote in that manner.

MR. BAGNONI: Mr. President?

COUNCIL PRESIDENT: Mr. Bagnoni?

MR. BAGNONI: Back in 1977 we introduced an ordinance, and then again we come back in 1985 with an ordinance. If that ordinance would have been supported

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[1] [Probably "eminences"]

and enforced, two places wouldn't be in business today; that would be Mr. Carr's place and Jiggles place, because they're near a [p. 9] residential – where one of the residential homes are or a church. You are in violation.

Now, what bothers me, Rita, is it was in the paper quoted where one of your offices upstairs in Zoning made the remark that somebody higher up ordered him to pull his horns in. I want to know who that was. That I want to know.

VOICE: Yes, we do. I agree a hundred percent.

MR. BAGNONI: I think there's one of the problems. The ordinances are on the books and not enforced. Now this takes place. You really didn't need any other ordinances.

Now, what this ordinance is, and it'll pass, I'll tell you right now, the girls can wear thongs or a G-string and little pasties that are smaller than a diamond. That's as close to being nude as you want to be.

Now, let me tell you, you know, the last place that I knocked off was a bottle club. In my time they were illegal. All right? I don't know if any – any other place has ever been touched since. I doubt it. But houses of ill repute, they didn't cause any problems. They're quiet places. People would go in and they'd come out, you know. But it's a violation of the law, and our job was to enforce the law. And if you have the ordinances and don't enforce the laws, then we have a problem.

[p. 10] Now, they say, "Well, you know, I don't go to those places, I don't have a need to go to those places, and if people want to go to those places, that's their

problem." What has taken place in this country is really something, and it's a real problem. We have pre-teenage pregnancies, we have free condoms in schools, drive-by shootings, abortions, suicide machines, kiddie porno, child abuse. Since 1990 we've had a 560 percent increase in violent crimes, and in the last 30 years illegitimate births have increased 419 percent; teenage suicide rate has increased 200 percent; student achievement test scores have dropped 80 points.

You know, it's unbelievable. Where would you ever think in my time that a 10-year-old or 11-year-old boy would commit murder? Where the hell have our morals gone to?

I think that the parents have a responsibility that they don't realize that they have. If they had grown under the roof of my mother and father they'd have been taught a few things. I don't think that parents are doing the job they're supposed to be doing, and anything that happens in the community has an effect on the total community.

Now, you wonder why there's an increase in – in rape, incest, sodomy. Boy, they do everything today, something I didn't even know at the age of 18. But something has to take place, and at this point we've come to this, and we have no alternative but to pass this at this point.

[p. 11] Gentlemen, that's all I have to say.

COUNCIL PRESIDENT: Thank you.

MR. BRZEZINSKI: I missed the vote on the first reading last week. I wasn't here. Prior to that I made a

statement saying that I would vote to make this an ordinance for one reason and one reason only, and that was to call public attention to the fact that I felt very, very strongly, and I feel just as strongly right now, that this is a zoning matter.

I thought long and hard, and I rethought. People who know me know that I'm pretty active in my Roman Catholic religion and my church, and I don't advocate the things that we're talking about here. But we're not talking about nudity, we're not talking about people's choices, we're talking about three clubs, two of which – or three, all three, will be shut down in one form or another until they figure out another way to get around it and do it again. That's not good enough for me.

And I won't be a populist, I won't be popular with everybody. Mr. McKinney, please get it right this time, because you missed it the last time I talked. I'm totally serious. Don't get me wrong, folks, I am for decency, I am not a nudist or anything crazy like that, but I do have a problem sitting up here in City Council and trying to play God with the rest of the world. That's not my job. I think we'd better start doing our job in that damn zoning department upstairs so things like this aren't tossed at our necks, because it's not right.

[p. 12] And that's all I have to say.

COUNCIL PRESIDENT: Thank you, Mr. Brzezinski. Mrs. Wright?

MRS. WRIGHT: I'm the one that voted against the ordinance. I will vote against the ordinance again tonight. I still feel that this is a question concerning your

Constitutional rights to do whatever – not whatever you want to do, but behind closed doors, in the privacy of your homes, your clubs, I just – I don't think I should sit here and judge you.

I'm not for nudity. I'm against violent pornography. I only had one woman, one person call. It was a woman, and it was tonight, and she said, "Why are you for the nudity ordinance?" She said, "I can't understand that." And she said, "I know – I heard you go to church" – and thank you, Mr. Brabender, for the promotion for my church.

MR. BRABENDER: I didn't know where you go to church.

MRS. WRIGHT: Oh. Thank you anyways. But I'm still going to vote no. I just – I don't know. I see things in here, even though many people, many good people spend a long hard time trying to get something that was enforceable, something that in their mind was realistic, that was good for the community, and I appreciate their efforts, but I still believe that I'm – that – and you don't have to – if I run again you don't have to vote for me, and I understand that, but [p. 13] I think I should say no to this ordinance at this time. Maybe in the future there would be something more acceptable, but at this time no. We have Constitutional rights and, you know, if you want to go to these bars, bottle clubs, I still think that you have a right. Thank you.

MR. MARAS: I'm just going to touch briefly on one aspect that was brought up. I received a letter the other day, and I think a gentleman alluded to it tonight, about the financial aspect of if this ordinance passes that

there'll be people losing their jobs and going out of business and things. Well, if you take a look at history, and this total nudity subject came up recently, in the last months, not years, months, take a look at Partners Tavern out in Harborcreek and Hanky Panky's is two examples of businesses that have kept open for many, many years. They've been there I don't know how long, but you have to do a little research, many, many years and been successful. They've made a lot of money.

As a matter of fact, Partners Tavern burned down, I believe, and the Harborcreek supervisors, elected officials, responsible people, gave them a variance I believe they needed to reopen and rebuild that – that establishment. That's exotic dancing, adult entertainment, and it will continue to be there after tonight; total nudity won't, but it hasn't been really their mainstay in the past anyway.

So those people who cry that a great financial burden [p. 14] will be placed on them and they'll lose their jobs, that's just not true. There still will be adult entertainment in this town, only it will be in a little different form. And again point to those two examples as financial successes. So for those people who think this ordinance is going to close those places down, that's just not true. And of course Partners is in Harborcreek, we understand, but Hanky Panky's is in the city limits.

Also one point, you know, one – one person called me and asked me, they knew where I voted for the ordinance last time, and it was a woman, a woman I'd say sounded like in her mid-50s, maybe 60s, says, you know, "If I – these people that are for this total nudity, wonder if

they had a daughter 18 years old or older, these people that are all for this, and they're certainly entitled to speak up on it, would they allow their daughter to dance totally nude in an establishment in the Erie area?" I doubt if many would stand up and come before us tonight and say they would. I doubt it very much. Mr. Klemm?

VOICE: Call for a tote.

(Whereupon, the videotape was completed.)

THE COURT: Is that it?

MR. FRIEDMAN: Yes, Your Honor.

(Whereupon, this partial transcript is concluded.)

[p. 15] C E R T I F I C A T I O N

I hereby certify that the proceedings and evidence are contained fully and accurately in the notes taken by me on the trial of the above cause, and that this copy is a correct partial transcript of the same.

/s/ Sylvia M. Waid
Sylvia M. Waid, RPR-CM
Official Court Reporter

The foregoing record of the proceedings upon the trial of the above cause is hereby approved and directed to be filed.

/s/ _____
George Levin, Judge

PAP'S A.M. t/d/b/a KANDYLAND	:	IN THE COURT OF
	:	COMMON PLEAS OF
VS	:	ERIE COUNTY,
	:	PENNSYLVANIA
THE CITY OF ERIE, JOYCE A. SAVOCCHIO, CHRIS E. MARAS, MARIO S. BAGNONI, ROBERT C. BRABENDER, DENISE ROBISON, and JAMES THOMPSON, in their official capacities	:	CIVIL DIVISION
	:	NO. 60059-1994

PARTIAL TRANSCRIPT OF INJUNCTION
(End of videotape to end of hearing)

Proceedings held before the HONORABLE GEORGE LEVIN, in Courtroom C, Erie County Courthouse, Erie, Pennsylvania, on Wednesday, October 19, 1994, commencing at 10:15 a.m.

APPEARANCES:

PHILIP B. FRIEDMAN, Esquire, appearing on behalf of the Plaintiff

GREGORY A. KARLE, Esquire, and GERALD J. VILLELLA, Esquire, appearing on behalf of the Defendants

Sylvia M. Waid, RMR – Official Court Reporter

[p. 2] P-R-O-C-E-E-D-I-N-G-S

(Whereupon, the following contains the portion of the hearing from the conclusion of the videotape showing to the conclusion of the hearing.)

THE COURT: Thank you. Could you give us a copy of that? We'll call it Court Exhibit 1.

MR. FRIEDMAN: I will, Your Honor.

THE COURT: Any additional testimony?

MR. FRIEDMAN: No additional testimony, Your Honor.

THE COURT: I only want one of you to speak. I don't care which one does.

MR. KARLE: Are they resting, Judge?

THE COURT: Do you want to offer any testimony at this stage?

MR. KARLE: No, Judge. All we would offer into evidence is a copy of the ordinance, Your Honor.

THE COURT: All right. That's already been offered.

MR. KARLE: All right. If the Court could take notice of the ordinance?

MR. VILLELLA: Are you accepting the argument that we have any burden of proof to go forward with anything?

[p. 3] THE COURT: Well, I think it's a preliminary injunction. If you feel – you might want to move forward on the burden of proof. I'm not trying to tell you how to try your case.

MR. VILLELLA: In our case we don't.

MR. KARLE: We have nothing else to offer, Judge.

THE COURT: Well, I guess in that case we'll proceed to argument. I think all parties should know that this is not a situation where the Court places a stamp of approval or disagrees with the type of dancing that is being done there. My personal opinion is really not relevant to the issue. I think those of you who know me know what my personal opinion is, but it's completely irrelevant to this. What we're trying to determine is whether or not there is a Constitutional right for which there be an injunction granted. I think there are certain issues, and I think you might agree with me that they're really not relevant or the Court need not discuss it.

I think the only issue before the Court, correct me if I'm in error, is the issue of whether or not a preliminary injunction should be issued. You have raised other issues in your brief and in your motion, including declaratory judgment. You've also raised the issue of pre-emption. But the only issue that I really see as ripe for my determination at this time is the preliminary injunction request. Would you agree with that, [p. 4] Mr. Friedman?

MR. FRIEDMAN: I would agree with that, Your Honor.

MR. KARLE: That's correct, Your Honor, that is our understanding.

THE COURT: Okay.

MR. FRIEDMAN: Your Honor, just to make clear, we have to show a reasonable iikelihood of success on the underlying issues in the case, and that's why the Court also has to look at the pre-emption question, the overbreadth question, the First Amendment question, the

Article 1 Section 7 question, because those are the actual underlying issues. In order to get a preliminary injunction, we have to show that we have a reasonable likelihood of success.

THE COURT: In other words, you would feel that the pre-emption issue has to also be discussed in the opinion the Court renders –

MR. FRIEDMAN: All the Court has to do is say there's a reasonable likelihood of success on one issue, not all of them. I'm saying there's substantial issues involved, including pre-emption.

THE COURT: But at this stage I definitely don't have enough information or testimony or anything else to determine pre-emption. I don't even have the – I may well want to look at the state statute to see what the intent was in [p. 5] passing the state statute. My own thought is it would be very improper for me to do it, but if you want me to consider it, I would think that if that's what you want me to consider, I certainly cannot decide that by Friday. We would have to have a lot more testimony as to what the state's intention was when they enacted it.

MR. FRIEDMAN: It's totally up to the Court what to consider. What I'm suggesting to the Court is that a preliminary injunction be granted to maintain the status quo so that the Court can have opportunity to review all of these arguments, so that we have an opportunity to present whatever evidence is appropriate.

But they are all important issues, I suggest. Applying the standard, all the Court has to do is take one issue and

say that is an issue where you have a reasonable likelihood of success. If the Court finds that on the First Amendment issue, which I would suggest the Court should, then the Court need not look at the other issues.

THE COURT: Well, on the other hand, I just – I'm not in a position at all to take pre-emption. I certainly have to address whether there's a reasonable likelihood of success on the basis of the Constitutional guarantee. We'll address that.

What I would like to do is just ask a few questions then and let you argue it. As I said, the briefs were [p. 6] excellent. What disturbs the Court from one standpoint, I would like your expression, as I said in chambers, what about the – what effect would this ordinance have on theater – theater productions such as Equus, Hair, O Calcutta? Under your ordinance would these things be prevented, Mr. Karle?

MR. KARLE: No, they wouldn't, Your Honor.

THE COURT: Why not?

MR. KARLE: To the extent that the expressive activity that is contained in those productions rises to a higher level of protected expression, they would not be.

THE COURT: Where does that say that in the ordinance, sir?

MR. KARLE: Paragraph 6 in the construction and severability clauses. And I might also point out, Your Honor –

THE COURT: Where does it say it?

MR. KARLE: Paragraph 6.

THE COURT: Paragraph 6 of the –

MR. KARLE: The ordinance, Judge.

THE COURT: I'm not sure what you're saying, sir. Six is construction and severability. Is that what you're talking about?

MR. KARLE: Yes. And also in the preamble, the recital "Whereas council is fully aware and wholly respects the fundamental Constitutional guarantees of free speech and [p. 7] free expression." That would guarantee protection for other productions which are claiming a higher protected expression than the plaintiff here.

THE COURT: But that's the preamble. It is not in the legislation itself.

MR. KARLE: It does become a part of the ordinance, Judge.

THE COURT: The preamble is important sometimes when there is confusion as to an ordinance. Many times we do go into that to determine legislative intent. But if the ordinance says it in black and white, we would certainly look to the ordinance as opposed to the preamble.

MR. KARLE: And also, Judge, as a state court you are empowered to construe an ordinance. So if, in fact, it is your concern that another would be harmed by this, you're simply free to construe this ordinance to protect those rights, if it's the Court's concern.

THE COURT: I saw that in your brief. I'm not sure I adopt that. I am concerned about the federal expression. Anything else on that issue?

MR. KARLE: No, Judge.

THE COURT: How do you feel about that, Mr. Friedman?

MR. FRIEDMAN: Your Honor, look at the ordinance. The ordinance prohibits state of nudity in a public [p. 8] place. A public place is defined as every possible place other than your home. This ordinance prohibits Equus, it prohibits Hair, it prohibits O Calcutta. It prohibits me to go down to Gannon University in the locker room and undress at lunchtime to play sports, because it's prohibited in here.

Now, when they enact this ordinance they're telling you well, look at the preamble. Look at the Constitution. It says Constitutional rights. Who's going to decide that? Is Mr. Karle? Is Mr. Villella? Is City Council? Is the Court going to have to hear every instance?

Let me give you an example. Let's say that a Broadway production of Hair wants to come to the City of Erie. They take a look at this ordinance and say no nudity. Now they have a couple options open to them. They can say, "Well, we think we have an inherent First Amendment right, we're going to go in and spend $10,000 on lawyers and litigate this question because we don't want to get arrested, we don't want the police to come in and raid us." That's why we have an overbreadth doctrine. The Court is exactly correct. It prohibits that. It even prohibits a mother from nursing a child who is over two

years of age in public. It prohibits a child over ten from taking her shirt off in public. It's ridiculous. This ordinance is patently absurd and –

THE COURT: Well –

MR. FRIEDMAN: I'm sorry, Your Honor.

[p. 9] THE COURT: No, I really want to hear your argument. I'm not trying to cut anybody short, because I obviously don't know where we're going to go in this.

MR. FRIEDMAN: I agree with the Court, and I think it's a real problem, and that's why we have –

THE COURT: But is it possible – let's assume for purposes of argument that the ordinance was amended to say that theater productions such as Equus and Hair and O Calcutta would be permissible. Could they do that and not allow this?

MR. FRIEDMAN: No, they can't list productions.

THE COURT: Well, I mean theater productions to be presented by a normal –

MR. FRIEDMAN: In this Commonwealth – in this Commonwealth we have a state obscenity statute, Section 5903 of the Crimes Code, which covers obscenity. It applies the Supreme Court's guidelines in *Miller*, which the Court is probably very familiar with. That's all you need to prohibit obscenity. This does not prohibit obscenity. This doesn't deal with obscenity at all. This deals with nudity. If a person is nude, they're guilty, period, in a public place. Simple as that.

THE COURT: Does anybody have a copy of the state statute handy?

[p. 10] MR. FRIEDMAN: I do, Your Honor.

(Document handed to Court.)

MR. VILLELLA: I believe you'll find that nudity – you cannot have minors under the age of 18 exposed to nudity in that statute, and that we are exercising the local option that is granted to us expressly to make nudity in public places not accessible to people over 18, full nudity as circumscribed by the court decision.

MR. FRIEDMAN: That's just slightly incorrect. There is nowhere in the statute that gives the City permission to outlaw nudity.

THE COURT: Well, if I – let me ask you this: If I apply the state statute, could I make a determination what's going on there is obscene?

MR. FRIEDMAN: I would suggest not. In fact, I have a copy of a memorandum written by the city solicitor saying that they would find it extremely difficult to call this obscene.

THE COURT: I'm not bound by any finding that they have.

MR. FRIEDMAN: I understand, but that's their position as well.

THE COURT: Would you agree with that?

MR. VILLELLA: I – I said – there are certain types of nude dancing that might be obscene, but what

[p. 11] we're hearing and what we're aware of we don't know that we could prove that. There would have to be some sort of activity that is touching patrons or some sort of other lewd activity that is beyond what we're hearing.

THE COURT: In other words, dancing itself would not be obscene?

MR. VILLELLA: It's possible to have nude obscene dancing, but we don't know where that line is. We're not entirely sure of that.

MR. FRIEDMAN: If that's the case, Your Honor, if the City believes that, let them enforce the state statute against my clients if they think this is obscene conduct. They know as well as I do that there's no way that it's obscene. But the important point is the Supreme Court has applied and adopted standards to make that determination, and that's what would have to be proven.

THE COURT: Let me ask this question. And again, I – I should have read this before, and I apologize for not reading it. Doesn't the statute basically talk about minors only?

MR. FRIEDMAN: No, no. Take a look at Subsection (a)(5).

THE COURT: (a)(5)?

MR. FRIEDMAN: Yes.

THE COURT: You're talking about this here? [p. 12] This section here? Why don't you come forward?

MR. FRIEDMAN: Judge, I don't have another copy.

THE COURT: Why don't you underline what you say applies to everybody, please?

MR. FRIEDMAN: Subsection (a), Your Honor does not just apply to minors. In fact, none of it does.

THE COURT: Let me take a look at it, please.

MR. FRIEDMAN: But Subsection (a)(5) makes it an offense to produce, present, or to direct any obscene performance or participate in a portion thereof that is obscene or that contributes to its obscenity.

THE COURT: That is listed –

MR. FRIEDMAN: That's the pre-emption argument, Your Honor.

THE COURT: All right. What else do you have to say, gentlemen? Any other arguments? Let me ask you this question: You know, we all agree that in order to get a preliminary injunction your right must be clear with the likelihood of success. How can this Court, when there's these various opinions by the United States Supreme Court which you disagree with, and I think there's five or six opinions in the one case of the Supreme Court where there's an opinion from the district court which goes contrary, how can this Court determine that this is a clear right?

[p. 13] MR. FRIEDMAN: The Court –

THE COURT: Not a clear right. That your chances of success are clear and that you're going to win? I'm faced with these brilliant people who have written otherwise. And I realize the one decision which you say is wrong is *Barnes*, because there were various opinions

raised, but certainly the Court has to take knowledge that there is that opinion out there. We have to take knowledge of the district court case, and I have to take knowledge that the appeal has been allowed in that district court case. How can I be sure that the right is clear?

MR. FRIEDMAN: It talks about a reasonable likelihood of success, Your Honor. And Your Honor is talking only about one issue, and that's the freedom of expression issue. I would suggest to the Court, and we've argued this rather extensively in our briefs, that the Court ought to apply the *Triplett* decision, which is post-*Barnes*. The Court is going to have to review *Barnes* in detail. The Court is going to have to review the other decisions.

If you go back before *Barnes*, you will see that there are a number of cases which are quite clear and which *Barnes* does not c[illegible]ule and which support our position. *Doran* is an excel[illegible] example. If you look at the district court's decision in *Doran*, they granted a preliminary injunction for an ordinance which is substantially similar to this ordinance. That [p. 14] preliminary injunction was affirmed by the Second Circuit. It was affirmed by the United States Supreme Court in a decision written by Justice Rehnquist. The Court does not at this point in time have to decide for certain that we are right. The Court has to decide if there's a reasonable likelihood of success on that issue.

The second issue is even clearer, Your Honor, and that's –

THE COURT: I think I can take the – taking your interpretation there is a likelihood, but whether it's reasonable I don't know. There's a very good possibility it

will be upheld, but with all those conflicting opinions, I have problems with that, I will be honest with you.

MR. FRIEDMAN: Sure, and I can appreciate that the Court is going to have to study these and make its opinion. But if you look at Pennsylvania case law on injunctions, the important point of a preliminary injunction is to maintain the status quo. This club has been in existence for two years in this city.

THE COURT: I am very much aware, Mr. Friedman. You gentlemen did not cite that. That's one you did not cite. This is what's called a prohibitory injunction as opposed to mandatory. In prohibitory the requirements are not as stringent as they are in a mandatory injunction, but they still are there.

[p. 15] MR. FRIEDMAN: Absolutely. And what we're asking the Court to do is just prevent criminal prosecutions based upon freedom of expression until such time as the Court has an adequate opportunity to review this in detail.

Judge, even if you put aside the First Amendment question, which is complex, look at the overbreadth issue which has been affirmed by every court, to my knowledge. This – it wasn't dealt with in *Barnes*. They did not discuss the overbreadth issue. The overbreadth issue has been dealt with extensively, and I've cited the cases in my brief. The Court has recognized and questioned them about the overbreadth issue. There is no doubt whatsoever that this statute is overbroad. It applies to Equus, it applies to –

THE COURT: But the moment they try to make it more specific you'll be in court saying that they're classifying and they're –

MR. FRIEDMAN: And I may.

THE COURT: And you would do it very capably. I know your abilities, sir.

MR. FRIEDMAN: And I may very well do that, Your Honor, but that's not the issue today. The issue the Court has to decide is the case in controversy before it: Is this case overbroad or isn't it? And it is. There's a substantial likelihood of success on that issue. I don't see how the Court could rule any other way, frankly, Your Honor.

[p. 16] And the Court can say Well, they can go back and change the ordinance. Well, let them. Let them go back and try to change the ordinance. This ordinance is directed at two bottle clubs, and my clients got caught up in it. If the Court wants to know the history of it, as one of the council members said, "The zoning office screwed up. That's why we have to go and make this ordinance up." If they honestly are concerned about secondary effects, they can deal with this in a Zoning Ordinance without any question. They have the right to zone, to prohibit certain conducts in certain areas of the city, but they turned it into a morality issue. And I think it's clear from what they've done here today, I think it's clear that it's overbroad.

Does the Court have to decide if we have a substantial likelihood of success? Sure the Court has to decide that. But all we're doing is asking the Court to maintain

the status quo until such time as the Court has an adequate opportunity to review the entire record. I don't think that we can step in and say Well, we're going to infringe on everybody's First Amendment rights in this community. And Gayle Wright, she took a courageous stand on this thing. I told her was it was a profile in courage.

THE COURT: Because she agreed with you?

MR. FRIEDMAN: No, no, because she agreed – she agreed to take what she perceived to be an unpopular stand in favor of the First Amendment to the Constitution as against [p. 17] the letters that they received from the various church leaders around the community. She stepped forward and said, "I'm going to stand behind people's Constitutional rights. I'm a mother. I may not agree, I may not want to view nudity myself, but I certainly recognize in this country that we have freedom of expression." And that's all she said.

Mr. Brzezinski said the same thing. You have four members of City Council who took a morality view on this, I think it's clear from that, and said, "We don't think this is moral." I mean, I wrote down some of the comments. The SAT scores are going down, there's condoms, there's abortions going on.

Now, they have a right to their opinion, and I may agree with a lot of what they said, but that doesn't give them the right to take away the Constitutional rights of other people, whether it be the majority or minority, and that's exactly what this ordinance does. It takes nudity and makes it unlawful. Period. And I think if the Court looks at the various arguments we've made under the

U.S. and Pennsylvania Constitution, under the pre-emption doctrine, overbreadth, the Court should conclude that there is a strong likelihood of success on these issues.

THE COURT: Mr. Karle, do you want to respond?

MR. KARLE: Judge, just concerning the [p. 18] statements of the City Councilmen. I don't think because they've made some expressions of opinion as to morality that that would vitiate the ordinance. I, too, wrote some things down, especially of Mr. Bagnoni's comments, which if I can paraphrase says everything that goes on in the community has an effect on all other parts, and he cited incidents of rape and violent crime. Now, if that isn't touching on concerns for secondary effects of nudity, I don't know what else does. But my point is, Judge, that isn't controlling. It's been incorporated into – into the ordinance, and that's the concerns that are set forth there.

But I would like to just talk about the – the preliminary injunction, Your Honor. I don't see where Mr. Friedman's demonstrated any irreparable harm at this point in the proceeding.

THE COURT: But I thought we discussed that. If, in fact – let's assume that a Constitutional right is being taken away, which he says it is.

MR. KARLE: Well, he's alleged that he's made –

THE COURT: Let's assume further I feel that there is a reasonable likelihood of success in enforcing the Constitutional right. Then he has – then he is in equity, is he not?

MR. KARLE: Well, he is, but I think, Judge, [p. 19] he has at least the threshold burden of coming forth and showing how he's harmed. He's made an allegation in a complaint and in the petition that there's a First Amendment issue at stake here, but I haven't seen one scrap of evidence as to what particular harm has occurred here. I've seen a tape today, Judge.

THE COURT: Well, let's assume that he said that they were restricted from nude dancing, which we're talking about here. Let's assume further I feel – and I'm not saying I feel that way, but that I feel that his right to have nude dancing is clear. Does he not have enough to get an injunction at this stage?

MR. KARLE: Well, if you take that opinion, yes, Judge.

THE COURT: I mean, I'm assuming it is clear. So if I make the determination that his right is clear, then he has enough without any further evidence; am I correct?

MR. KARLE: I would think he would have to have a demonstration as to the expression that's at issue in the case, Judge. I mean, he doesn't have an absolute right to – there is no Constitutional case that I'm aware of that says you can be nude in public. I think we would agree on that. It's the expression that is maybe derivative of that that's at issue. I haven't seen that.

THE COURT: I really hesitate to say this, because I do not want to make a farce of this, I really don't. [p. 20] I do not look forward to it, but are you

saying we would have to view the dance to make a determination?

MR. KARLE: I would think we would have to hear at least from the plaintiff here to see how his rights have been infringed on, Judge. That's all we're saying. We've seen a tape. That's all that has been offered into evidence as to how this ordinance came about.

THE COURT: But we've seen the statute that has passed. We've – and if I – I guess I am reaching, and I apologize. It seems to me I've asked you if I were to determine that – I'm not saying I would, but if I were to determine that it's a very clear right that he has, first of all I think we agree that the right to dance is a Constitutional right. And let's assume I determine that as a matter of fact that he has a good likelihood of success in having his – being able to dance in the nude or what have you, that he will prevail in this case. Do I not have enough to go into equity and give an injunction?

MR. KARLE: Yes, Judge, but I think we still have a fundamental difference.

THE COURT: I'm not saying that I'm going to rule that way, just if, in fact, I were to find it.

MR. KARLE: You can find that one has a Constitutional right to dance, but there is no case that I'm aware of that says you have a right to be nude in public. I mean, that's the fundamental difference that I see, Judge.

[p. 21] THE COURT: We're going to have to look at those cases. Do you happen to have the *Schad* case?

MR. FRIEDMAN: I do, Your Honor.

THE COURT: Do we have a copy of that, Chris?

THE LAW CLERK: No, sir.

THE COURT: May I see that?

MR. FRIEDMAN: Sure.

MR. VILLELLA: You will find *Schad* in Supreme Court was bound by a very broad interpretation of the State Supreme Court.

THE COURT: Is this an extra copy we can keep?

MR. FRIEDMAN: Yes, you can keep that.

MR. VILLELLA: The State Supreme Court said that that ordinance banned all live entertainment in the Borough of Mount Ephraim. Of course that's overbroad. They can't further construe the state statute or local ordinance.

MR. FRIEDMAN: Judge, I would suggest you take a look at *Doran* again, too. Chris, if you haven't got it –

THE COURT: We have *Doran*.

MR. FRIEDMAN: The district court decision. Judge, we're not asking you – we're not coming in here saying that – I mean, this deals with nude dancing as far as my client is concerned. But the Court in construing overbreadth, Mr. [p. 22] Karle is right, it does make it illegal to be nude in any public place. I mean, that's what it says.

MR. VILLELLA: Judge, given what we've said about how the ordinance will be interpreted and

enforced, what is going to happen to Kandyland if this ordinance goes into effect? What is going to happen to them? What does he think is going to happen?

MR. FRIEDMAN: It doesn't matter.

MR. VILLELLA: It does matter.

THE COURT: If this ordinance is passed, could people be arrested at Kandyland?

MR. KARLE: The dancers, conceivably, if they're nude, Judge.

THE COURT: But could not the owners be arrested for conspiracy?

MR. KARLE: No, Judge, the dancers would be cited in the first instance. There's a provision that they could be closed down later on as a public nuisance, but not in the first instance. And they wouldn't be closed down if this ordinance was enacted tomorrow if you did an order.

MR. FRIEDMAN: Judge, I suggest maybe the city solicitor ought to read what he wrote, because in Number 7, the penalty, makes it a crime to promote or maintain or it says as a property owner, proprietor, manager of a business shall be guilty of a summary offense.

[p. 23] THE COURT: I would think under the laws he could be guilty of that, certainly promoting it.

MR. FRIEDMAN: It's right in the ordinance.

THE COURT: I agree with you. I don't often agree with Mr. Friedman, but I do here. I think he certainly could be guilty of something.

MR. VILLELLA: I'm talking about how would their operation change as opposed to what they're doing now if they wear a small amount of clothing.

THE COURT: I'm not judging that issue.

MR. VILLELLA: Fine.

THE COURT: Anything else anybody wishes to say?

MR. FRIEDMAN: Nothing else, Your Honor.

THE COURT: I don't mean to cut you short. If you want to give me a five minute summation?

MR. KARLE: We have nothing, Judge.

MR. FRIEDMAN: That's what I just gave. I think I covered everything that I wanted to cover.

THE COURT: All right. Is there anything else over there?

MR. KARLE: No, Your Honor.

MR. VILLELLA: No.

THE COURT: All right. We'll take it under advisement and try to get it out as quickly as we can. Court [p. 24] stands adjourned.

MR. FRIEDMAN: Thank you, Your Honor.

MR. KARLE: Thank you.

(Whereupon, the proceedings were concluded at 11:20 a.m.)

[p. 25] CERTIFICATION

I hereby certify that the proceedings and evidence are contained fully and accurately in the notes taken by me on the trial of the above cause, and that this copy is a correct partial transcript of the same.

/s/ Sylvia M. Waid
Sylvia M. Waid, RMR
Official Court Reporter

The foregoing partial record of the proceedings upon the trial of the above cause is hereby approved, and directed to be filed.

George Levin, Judge

PAP'S A.M. t/d/b/a KANDYLAND	:	IN THE COURT OF COMMON PLEAS OF ERIE COUNTY, PENNSYLVANIA
vs	:	
THE CITY OF ERIE, JOYCE A. SAVOCCHIO, CHRIS E. MARAS, MARIO S. BAGNONI, ROBERT C. BRABENDER, DENISE ROBISON, and JAMES N. THOMPSON, in their official capacities	:	CIVIL DIVISION
	:	No. 60059 of 1994

ARGUMENT

Proceedings held before the Honorable George Levin, in Courtroom A, Erie County Courthouse, Erie, Pennsylvania, on Wednesday, December 21, 1994, commencing at 2:40 p.m.

APPEARANCES:

Phillip B. Friedman, Esquire, appearing on behalf of the Plaintiff.

Gregory A. Karle, Esquire, appearing on behalf of the City of Erie.

Gerald J. Villella, Esquire, appearing on behalf of the City of Erie.

James M. Muscarella – Official Court Reporter

[p. 2] P R O C E E D I N G S

THE COURT: Good afternoon.

MR. FRIEDMAN: Afternoon, Your Honor.

THE COURT: Let's just do some housekeeping matters, if we may. It's my understanding that respective

counsel have entered into a stipulation which we can make part of the record, is that correct?

MR. FRIEDMAN: That's correct, Your Honor.

THE COURT: I have it in front of me, but do you want to read it, Mr. Friedman, and make sure everybody agrees with that?

MR. FRIEDMAN: Certainly. Your Honor, we have entered into the same stipulation that was entered into at time of the hearing regarding the preliminary injunction. The stipulation reads as follows: "The Plaintiff, Pap's A.M., is the owner of a business known as Kandyland. The business is located at 1402 State Street, Erie, Pennsylvania.

Two, the Plaintiff's business is located in a commercial area of the City of Erie.

Three, the Plaintiff provides entertainment to its customers in the form of nude dancing.

Four, the Plaintiff does not serve alcoholic beverages on its premises but invites and allows people [p. 3] to bring alcohol to the premises.

Five, on September 28, 1994 the City Council of the City of Erie enacted Ordinance Number 75-1994 which is attached hereto and incorporated. The ordinance was signed by Mayor Savocchio on September 30th, 1994. The ordinance became effective on October 21, 1994."

That's the extent of the stipulation, Your Honor. In addition, we will be providing the Court with the testimony that was presented at time of the preliminary injunction hearing, which was basically the statements of

City Council members made at the time the ordinance was adopted. So we will introduce Plaintiff's Exhibit 1, which is a tape.

THE COURT: First let me – do we agree on the first stipulation, Mr. Karle, those five matters.

MR. KARLE: Yes, Your Honor.

THE COURT: You can make that a matter of record?

MR. KARLE: Yes, we can make that a matter of record.

THE COURT: Okay, fine. What about – now, you want to offer into the record the transcript?

MR. FRIEDMAN: The transcript and the tape of the City Council meeting which I have marked as Plaintiff's Exhibit 1.

THE COURT: Any objections to that?

[p. 4] MR. KARLE: No objections, Judge.

THE COURT: Admitted and made part of the record.

(Whereupon, Plaintiff's Exhibit 1 was produced and received into evidence.)

THE COURT: Is there any additional testimony that you wish to offer?

MR. FRIEDMAN: There is not, Your Honor.

THE COURT: Is there any additional testimony that the City wishes to offer?

MR. KARLE: No, Your Honor.

THE COURT: Now, based on a conversation in chambers, we have nothing in writing, the Court did discuss with counsel whether or not it would want a nisi order, which is generally what we would issue in a case like this in a possible way to avoid – to maybe get a quicker result, that you would waive that and the Court would be authorized to enter a final order one way or the other, is that correct, Mr. Friedman?

MR. FRIEDMAN: That's correct, Your Honor.

THE COURT: Is that correct, Mr. Karle?

MR. KARLE: That's correct, Your Honor.

THE COURT: I think – I'm sure, maybe I asked you, you have no testimony you wish to offer either, [p. 5] Mr. Karle, is that correct?

MR. KARLE: Pardon me?

THE COURT: You have no additional testimony you wish to offer?

MR. KARLE: No, Judge, we have nothing.

THE COURT: In each of your briefs that have been filed with the Court, have you prepared any proposed findings of fact?

MR. FRIEDMAN: Your Honor, I think the proposed findings of fact are merely the stipulations.

THE COURT: That would be your position, is that correct?

MR. FRIEDMAN: Yes.

MR. KARLE: We have our own findings of fact and conclusions of law, Judge.

THE COURT: May I see them, please, for a moment.

MR. KARLE: Sure.

THE COURT: You probably gave them to me. Do you have them in front of you, Mr. Friedman?

MR. FRIEDMAN: No, I don't, Your Honor. Oh, they're attached to the brief.

THE COURT: I can't take these unless we have some testimony. Some of these I guess I can take. You want to review those, Mr. Friedman?

MR. FRIEDMAN: Yes. Your Honor, we would not be [p. 6] agreeable to these. There is no evidence on the record to support at least Number 3.

THE COURT: Maybe we will have to have testimony on it then. What about Number 4?

MR. FRIEDMAN: That's a conclusion of law.

THE COURT: That's a fact I thought.

MR. KARLE: Yeah.

THE COURT: It became effective –

MR. KARLE: Requiring – it's not controverted.

THE COURT: Dancers were required to wear –

MR. FRIEDMAN: That's a conclusion of law. They're saying that's what the ordinance says they have to.

MR. VILLELLA: Saying they were –

THE COURT: Well, that's what you are – I'm not trying to be facetious.

MR. FRIEDMAN: Okay.

THE COURT: You are actually fighting that this Court – you are saying that's what they're requiring you to do and you're objecting to it.

MR. FRIEDMAN: That's true. That's what the ordinance says they have to do, absolutely.

THE COURT: That's all it says. What about if it said the "dancers were required by the ordinance," can we have that? Would that be satisfactory to you?

[p. 7] MR. FRIEDMAN: Sure, that's fine. I don't have any problem with that.

THE COURT: Let's make that one modification. I'm not trying to throw something down your throat, but I think that's –

MR. FRIEDMAN: Okay.

THE COURT: Said, "such dancers were required by the ordinance." We will read this afterwards. We want to make sure. What about Number 5?

MR. FRIEDMAN: First part is true, we have entered into a stipulation. That's th[illegible]full extent of the evidence. We are challenging –

THE COURT: I don't think that's really a finding of fact.

MR. FRIEDMAN: Yes.

THE COURT: I'm not – I wouldn't call that a finding of fact.

MR. FRIEDMAN: It's not, nor is Number 6. The ordinance speaks for itself.

Nor is Number 7.

THE COURT: Let me just take 6 first.

The ordinance does speak for itself. Wouldn't that be, Mr. Karle.

MR. KARLE: That's correct, Judge.

THE COURT: I don't think – it may be a [p. 8] conclusion of law right now. I'm looking for findings of fact. I don't think that would be a finding of fact.

MR. KARLE: Okay. That's fine. We withdraw that.

THE COURT: So Number 5 and 6 – 7, it's a conclusion of law. It might well be both of them, not as a finding of fact. Well, may I make a suggestion, counsel? Rather than taking Number 7, why don't we make the pleadings actually part of the record?

MR. FRIEDMAN: They are.

MR. KARLE: They are anyways.

THE COURT: And matters before the Court so we can adopt them.

MR. KARLE: That's fine. If we want to strike –

THE COURT: I'll treat – this is argument, once the pleadings are in, we would be able to treat it as such.

MR. FRIEDMAN: Sure. The pleadings are part of the record.

THE COURT: For the Court's review purposes. And the Court would be allowed to – and any admissions – put it this way, and any admissions contained in those pleadings, the Court could consider same, is that correct?

MR. FRIEDMAN: That's correct, Your Honor.

[p. 9] THE COURT: Mr. Karle?

MR. KARLE: That's correct, Judge.

THE COURT: What about Number 8?

MR. FRIEDMAN: Number 8 we would not agree to.

THE COURT: Pardon me?

MR. FRIEDMAN: Number 8 we would not agree to. There is no evidence on the record to support that.

THE COURT: I think the only evidence I have now is what they said on the tape. If you have any other evidence, I'll consider it.

MR. KARLE: That's part of the record, Judge.

THE COURT: We have – I think the tape is going to be the evidence on that. I'm not going to.

MR. KARLE: I mean, that is made a part of the record, Judge. And our position is that is a fact that's been established in these proceedings.

THE COURT: We will have to consider it. It's part of the record and have to consider it as a proposed –

MR. KARLE: That's a proposed finding, there is evidence to support it.

THE COURT: I think the Court was in error.

MR. KARLE: All right. That's fine.

MR. FRIEDMAN: I would agree, Your Honor, that the play "Equus" played in October and November of 1994 at [p. 10] the Roadhouse Theater in downtown Erie. I wouldn't agree with the rest of it.

THE COURT: What?

MR. FRIEDMAN: I will agree that the play "Equus" has appeared in the City of Erie in the months of October and November 1994.

THE COURT: Wouldn't you agree no effort was made to enforce the nudity provision.

MR. FRIEDMAN: I have no idea. I have no idea.

THE COURT: They're saying that – can you offer any testimony to the contrary? I think we can accept it because there is nothing before the Court, at least that the Court is aware of, that would be opposed to this.

MR. FRIEDMAN: That's the point, there is no evidence on the record one way or the other if there were efforts made or not.

THE COURT: Maybe we have to take testimony.

If Mr. Karle states to me that there was no efforts to enforce that, I'm going to have to accept it unless you can offer testimony to the contrary.

MR. FRIEDMAN: I don't care. All I'm saying, there is no evidence on the record, whether they did or didn't is totally irrelevant. If they want to tell you they didn't – Mr. Karle, as far as I know, doesn't [p. 11] work for the Erie Police Department.

MR. KARLE: Your Honor, I think I have knowledge as to that fact. I'd be happy to put Mr. Villella on the stand and qualify him as a lay witness who would have such knowledge. If you would want to clean up the record to support this finding, we could do so in thirty seconds.

THE COURT: I think they could do that.

MR. FRIEDMAN: We could agree to it, I don't care.

THE COURT: We would agree that Number 9 would be part of the record.

MR. FRIEDMAN: Well, Your Honor, I don't know the significance.

THE COURT: You might not know the significance, we will make that ruling later, Mr. Friedman.

MR. FRIEDMAN: I understand they're saying "in a work of acknowledged artistic and social merit." Who is making – who is making that determination?

MR. KARLE: Your Honor, we would be happy to strike that.

THE COURT: All right. Let's strike that out.

MR. KARLE: Strike that language of "artistic and social merit." But I think the Court took notice,

judicial notice that "Equus" was here. If this is disputed, we will cross out "was performed," words – [p. 12] "nudity work was performed for several weeks," that's what we will put in, all right?

MR. FRIEDMAN: That's fine.

THE COURT: The one we didn't cover yet and we weren't sure we could agree on so far is Number 3. Let's take it sentence by sentence: "Until the effective date of the ordinance, Kandyland had advertised itself as the place 'where the whole wrapper comes off,' and featured no entertainment other than nude female dancers." Can you agree to that portion, Mr. Friedman?

MR. FRIEDMAN: I would agree to that, Your Honor. Well, I'll tell you what I would agree to, "and featured nude female dancers."

THE COURT: Anything else? All it says – nothing else. Do you have something else?

MR. FRIEDMAN: I don't know that, entertainment could be people talking to each other. They could be – entertainment could consist of talking to the people that work at Kandyland.

THE COURT: I think it would be live entertainment that – it doesn't say that. The Court would construe it to mean that, Mr. Friedman.

MR. FRIEDMAN: That's fine. The principle entertainment is nude female dancers.

[p. 13] THE COURT: And I can see why you would not want the next thing because that would be a

matter of fact, featured – "expressed a 'message of eroticism,' " right?

MR. FRIEDMAN: That's correct.

THE COURT: You are not agreeing to that, is that correct?

MR. FRIEDMAN: No.

THE COURT: I understand why. Let's try to dress it up now, gentlemen, if we can, please. The first finding of fact which the Court would go along with is actually almost part of the proposed stipulation previously. "One, the City of Erie Council enacted Ordinance Number 75 of 1994, Public Indecency, on September 28th, 1994, and became effective twenty days later after the signature of the Mayor." Agree on that, counsel?

MR. FRIEDMAN: Yes.

THE COURT: "Two, the Plaintiff is a corporation whose sole shareholder and director is Nick Panos. The corporation operates an establishment known as 'Kandyland' in downtown Erie, which is a Bottle Club featuring nude female dancers, unregulated by the Pennsylvania Liquor Control Board." You agree on that?

MR. FRIEDMAN: Yeah.

[p. 14] THE COURT: "Three, until the effective date of this ordinance, Kandyland advertised itself as the place 'where the whole wrapper comes off' and featured no entertainment other than – no live entertainment other than nude female dancers." You agree on that?

MR. FRIEDMAN: Yes.

THE COURT: "Number 4, the ordinance became effective – when the ordinance became effective, such dancers were required by the ordinance" – those words were added – "to wear, and continue to wear minimal articles of clothing such as 'pasties and G-strings' similar to such dancers in liquor-licensed premises throughout the Commonwealth." All right?

"Number 5" –

MR. FRIEDMAN: Your Honor, I don't – the end of that where it saves, "similar to such dancers in liquor-licensed premises throughout the Commonwealth." I don't have any firsthand knowledge of that, what the LCB may or may not require. I would not agree with that.

THE COURT: What?

MR. FRIEDMAN: I don't know that the last part of that where it says, "similar to such dancers in liquor-licensed premises throughout the Commonwealth." I don't know what their –

[p. 15] THE COURT: All right. We will get rid of that. I don't think that's really too relevant anyway.

Okay. What did we decide about Number 5 again?

MR. FRIEDMAN: We decided to strike that.

THE COURT: That's what I thought.

MR. FRIEDMAN: As well as Number 6.

THE COURT: Number 5 and 6 and Number 7.

MR. FRIEDMAN: And Number 7 we agreed that the pleadings would become part of the record.

THE COURT: Pardon me?

MR. FRIEDMAN: We agreed that the pleadings would become part of the record?

THE COURT: Part of the record concerning any admissions contained therein or other statements, is that correct?

MR. FRIEDMAN: Correct.

THE COURT: What did we agree on Number 8?

MR. FRIEDMAN: We agreed to strike Number 8. The tape speaks for itself.

THE COURT: All right. And Number 9. What we are going to do is add "The play, 'Equus' featured frontal nudity and was performed for several weeks in October/November 1994 at the Roadhouse Theater in downtown Erie with no efforts to enforce the nudity prohibition which became effective during the run of [p. 16] the play." Is that correct?

MR. FRIEDMAN: That's correct.

THE COURT: All right.

MR. KARLE: Your Honor, if we revisit 8, I think we agreed otherwise.

THE COURT: Which one?

MR. KARLE: Number 8, that's our proposed finding of fact and it's supported by the record. That's what the City Council had said on the tape.

THE COURT: I think what I said though, Mr. Karle, we are going to have a transcript of that, I understand.

MR. KARLE: We do have, yes.

THE COURT: And that's going to speak for itself, really.

MR. VILLELLA: Yes.

THE COURT: Is there anything you can argue from that transcript? But the transcript will speak for itself.

MR. KARLE: All right.

THE COURT: Is there any other factual things that are in dispute that anybody wants to offer any testimony on?

MR. FRIEDMAN: No, Your Honor.

THE COURT: Mr. Karle?

[p. 17] MR. KARLE: No, Judge.

THE COURT: And there are no additional pleadings that anybody wishes to offer, is that correct?

MR. FRIEDMAN: That's correct, Your Honor.

THE COURT: Is there any additional discovery that anybody wishes to take or make?

MR. FRIEDMAN: No, Your Honor.

THE COURT: Counsel, it appears to the Court that the record is completed. There is one gentleman in the courtroom who has asked to address the Court. I'd like to make this statement part of the record, does anybody have any problem with that? Mr. Morton.

MR. FRIEDMAN: No, Your Honor, no problem.

MR. KARLE: We have no problem, Judge.

THE COURT: Mr. Morton, come forward and give us your name. your address and who you represent.

MR. MORTON: Thank you, Your Honor.

THE COURT: And who you represent.

MR. MORTON: Afternoon, Your Honor, counsel. My name is Bill Morton. I'm here this afternoon representing the Erie Playhouse and the Roadhouse Theater, and I've been asked by these two organizations and at the request of the Court to make a presentation on behalf of what the arts community or my clients believe the effect and enforcement of this ordinance [p. 18] will have on future productions.

Between these two organizations, Your Honor, the Erie community is presented with a variety of theatrical experiences. These range from light hearted family fair [sic] to serious avant garde productions addressing and commenting on serious and novel social issues. This Court requested the input of the arts community regarding the effect the enforcement of the City's ordinance will have on the arts in Erie.

Your Honor, the enforcement – strict enforcement of the City's ordinance will have a profound and chilling effect on the organizations I represent and the Erie Arts Community as a whole. We appreciate the City's position that it does not intend to enforce the ordinance against the arts community. However, the current administration's promises are not binding on future administrations. As long as the ordinance is on the books and can be

enforced, it will have a negative impact on the arts in Erie.

Each year the Playhouse and the Roadhouse goes through a painstaking process to decide the plays that they will present to the Erie community. Before the ordinance, the selection committee made its decision based on the artistic merit, social impact, the entertainment and production values alone. Now we must [p. 19] be concerned with potential enforcement of the City's ordinance and the impact its enforcement may have on any production that contains any nudity or any touching.

The Playhouse has performed productions like "Hair" and "Bent." The Roadhouse recently performed "Equus". Each has nudity and strong adult content. The decision regarding nudity in each performance was up to the director's and actors' interpretation. The decision was not affected by a government imposed standard that is subject to varying interpretations by government officials who do not share the same opinion regarding the artistic, literary, social content or importance of the production as the members of the public, the cast and the production staff. Should an important production be stopped or not presented because one or two members of a government organization with the power to enforce the laws believes it lacks serious artistic, literary or social content? My answer is a resounding no!

The Playhouse should not be forced into the position of defending any production that it presents. They should not be forced to adopt contingency plans in the event that a government official tries to close a play or arrest a member of a cast or a director. That [p. 20] act alone stops

the production, damages the organization and forces the expenditure of scarce funds to defend against the government action. As long as these possibilities exist, they chill my clients' freedom of speech and expression. The presentation and subjective interpretation of a play is a guaranteed constitutional right.

The possible enforcement of this ordinance gives the government the power to affect the essence of our constitutional liberties, to free speech expression and presentation of thoughts and ideas. Any infringement on that right by the government, however slight or however well intentioned, cannot be tolerated by a free society.

Accordingly, I ask this Court on behalf of my clients, the Erie Playhouse and the Roadhouse theaters, to strike down the ordinance and give the protection to the arts community.

Thank you, Your Honor.

THE COURT: Thank you. Before you leave, Mr. Morton, I'm sure Mr. Friedman has no comments. Mr. Karle, number one, do you object to making that part of the record, the statement of the Playhouse?

MR KARLE: No, Judge, I certainly don't object to that part of the record.

[p. 21] THE COURT: And also would you want to respond to that right now, or do you want to respond to it in your oral argument later.

MR. KARLE: If I could briefly right now, I would like to address Mr. Morton's concerns. And I'm sure he's carefully reviewed the ordinance, and I'm sure

he's noted the severability clause and the construction clause in the ordinance. Our intention was, and it's the City Council's intention not to infringe on constitutional rights to the extent the Playhouse is doing productions which can – which content or which conduct can be construed as a protected performance. Certainly, we don't think this ordinance applies, it's been our – it's been our position that it doesn't apply. We would just like Mr. Morton or his clients to realize that and perhaps review the severability clause and look at our position in light of it.

MR. MORTON: We will, Your Honor. Your Honor, I mean, we have reviewed the severability clause, we are aware of it, we appreciate the fact that the City put that in. It still comes down to the point of who is going to make the decision, who is going to decide what play, what production has serious literary, artistic and social content that's deserving of protection and what isn't. If the ordinance isn't there, then we [p. 22] don't have that concern. As long as the ordinance is there, somebody in government has the power to make an interpretation. They might be wrong, it might be against the weight of legal and social opinion, but it can still have a chilling effect and create a severe economic hardship for this – the specific organization.

THE COURT: I think I have your position.

MR. MORTON: Thank you.

THE COURT: The attorneys went very far to have you make your speech and make that part of the record.

MR. KARLE: Your Honor, if I may respond?

THE COURT: Sure. You have a right to respond.

MR. KARLE: If I can respond, this ordinance – there are some similarities to the enforcement of obscenity laws. There is a measure of subjectivity to it. And, of course, the reason for that is just that the elusive nature of the First Amendment, it's difficult to define and to get a hold of. But if I can draw the analogy, Judge, with obscenity laws, there are obscenity laws both in state and – in ordinance and in statute and they are enforced in a subjective manner. But nonetheless, that doesn't mean they're enforced incorrectly or in a wrong fashion, and I think that Mr. Morton should appreciate that application.

[p. 23] THE COURT: Okay. And the Court truly appreciates what the City has done so far, and I think we have that part of the record. Thank you very much, Mr. Morton.

MR. MORTON: Thank you for the opportunity.

THE COURT: Mr. Friedman, do you have any questions you want to ask Mr. Morton?

MR. FRIEDMAN: No, Your Honor.

THE COURT: Do you have anything else you would like to ask, Mr. Karle?

MR. KARLE: No Judge.

THE COURT: Again, I'll be addressing my remarks to Mr. Karle, but, Mr. Villella, please feel free at any time to also be allowed to speak in this matter.

It would seem to me at this stage that we can go right to oral argument. Is that correct, is there anything else?

MR. FRIEDMAN: Yeah, that's fine, Your Honor.

THE COURT: I would – I would like you to address one other thing. I would like you to address, along with everything else, whether or not, in your opinion, the Court has the power to strike certain provisions or to modify the ordinance in any way whatsoever to make it meet the requirements of "Equus" or "Hair" or something else, or any other thing or purpose the Court might so feel appropriate. We have done some research, [p. 24] but I would like to hear from counsel as to what their thoughts on it are plus everything else. If you want to have some time limits, counsel. If you give me a reasonable time, we will let you have that time.

MR. FRIEDMAN: I'm not going to be long, Your Honor.

THE COURT: All right.

MR. FRIEDMAN: Should I proceed, Your Honor?

THE COURT: Sure.

MR. FRIEDMAN: Your Honor, as I sat here and listened to the last exchange, the arts community coming in here and saying strike down this ordinance because the ordinance prohibits nudity, period. Mr. Karle has the nerve, the absolute gall to say, "Don't worry, Playhouse, the City is here to sever off anything that it thinks is appropriate. So, if we think you are having an appropriate production up there, we are not going to take any action against you. Isn't that nice in a free society to have

somebody such as the City Solicitor to review everything for you and me and all these people and tell us what's good and what's not good. We can have some kinds of nudity but not other kinds of nudity, so sayeth the City. Isn't that great in our society when we have the City to look out for us, to tell me what I can see, to tell my [p. 25] family what they can see. Isn't that wonderful in a free society, Your Honor? And that's the whole problem with this ordinance.

The question the Court has to decide today is whether the Bill of Rights is alive here in Erie County.

THE COURT: Excuse me, gentlemen, just so you know, there is no way the Court is going to decide this case today. I will tell you and anybody else present in the courtroom, it will be at least three to four weeks from the time of this hearing, partly because of the holidays and partly because the Court must research this. And we know we have various Federal cases and State cases which the Court must try to analyze and apply the appropriate law. So, we will be probably looking three to four weeks at the maximum.

MR. FRIEDMAN: Thank you, Your Honor.

The question is whether or not four members of City Council versus two members of City Council can say, "People of Erie, you can see this but you can't see that," or whether it's the Constitution that prevails; whether this is a free society. We as individuals have the right to express ourselves and the right to view activity which is protected by the First Amendment.

[p. 26] This ordinance is not an obscenity statute despite the City's position. That's one of the problems with it. It doesn't anywhere – or the state statute on obscenity – it doesn't have any of the safeguards of the Obscenity Statute. It doesn't comply with Supreme Court rulings on obscenity. What it does is it makes nudity illegal, period, in a public place, and a public place is defined widely, broadly. A public place could include a locker room, it can include a theater, it can include my client's place of business, it can include just about everything outside of the home. And what it says plain and simple is nudity is a crime in the City of Erie in any public place, period. It's not a zoning ordinance, it's not a liquor control ordinance, it's an ordinance enacting social policy as it was seen by four members of City Council, and that's all it is.

Kandyland presents nude dancing. It doesn't force people to come in to its establishment, it doesn't go out on the street and expose nudity to the public in general. It provides entertainment in the form of nude dancing to adult individuals. It doesn't serve alcoholic beverages. It does permit alcoholic beverages to be brought on to the premises. That is not a violation of the law, it's not a violation of any zoning ordinance.

[p. 27] Your Honor, dancing in the nude is entitled to First Amendment protection. The Supreme Court has said so. This Court has said so, that is a given.

Our first contention, Your Honor, today is that this ordinance violates freedom of expression as guaranteed by the First and Fourteenth Amendment.

THE COURT: Which is the right to dance in the nude?

MR. FRIEDMAN: That is correct, under the First and Fourteenth Amendments to the United States Constitution and under Article I, section 7 of the Pennsylvania Constitution. The City relies upon the *Barnes* decision, and we have been over this and over this and over this. What does *Barnes* stand for? *Barnes* is a plurality decision, it commanded no majority position. The only opinion to garner another vote was the dissenting opinion. The opinion garnered three votes for the Court opinion, one vote for Justice Souter's concurring opinion and one for Justice Scalia's concurring opinion.

The Court is familiar with the Court's decision in *Triplett* and the 6th Circuit Court's decision in *Triplett*. I would suggest to the Court the best decision is the Court's decision in the *Triplett* case.

THE COURT: I think I said that last time because [p. 28] it agreed with you on that.

MR. FRIEDMAN: And that was correct.

THE COURT: At least I was correct once in this lifetime.

MR. FRIEDMAN: It's great.

Your Honor, go back, read the testimony of the members of City Council, look at the tape. All you really need to do is read the transcript and you tell me in there what was the intention of the members of City Council in enacting this ordinance. It is clear. It couldn't be clearer what they're trying to do is they're taking their own position on what they feel is a morality question and

they're going to impose it upon everyone else whether they like it or not, period. They're saying our morals – tell us that it is not okay to view a nude dancer. It's okay to view if you have a pasty on, but you can't view a nude dancer. The church tells us this, our own teachings tell us this and this is what we want you, the people of the City of Erie, to do. Four of us agree on this. Four of us voted in favor of it, two of us voted against it.

In my brief, on page ten, I go over some of the comments that were made, and I'm not going to read them all to you. But each one of the City Council went through and said these are the reasons we did it, and [p. 29] each one of them cited morality positions and only morality positions to support their positions. They never talked about any secondary effect as required by the Court in *Triplett*, none of them were concerned about it. What concerned them was they wanted to impose their own morality views on everyone else, and there is exactly what the District Court said was totally improper.

The 6th Circuit said there was language that there was evidence presented to the District Court from which the District Court should have concluded that there were indeed secondary effects considered by the City Council of Akron. In this case there is no mention of any secondary effects. The only place any secondary effects appears is in the ordinance itself and that is just a subterfuge, Your Honor, that was put in there by the solicitors when they drafted this. I doubt that the City Council members even read it, number one. But if it was so important to them, if that's why they enacted this ordinance, why didn't they say so? Why is there no testimony to that? Why didn't the City bring in the City Council people?

THE COURT: Mr. Friedman, what I have now is – you can't argue what their intention was because you closed the record on me.

[p. 30] MR. FRIEDMAN: That's correct, Your Honor.

THE COURT: And we have what they stated and we have what the thing stated. I really think it inappropriate for you to tell me what they intended because I have no evidence of that other than what they said there.

MR. FRIEDMAN: That's what I'm suggesting what they intended is exactly what's on the record, that's my position.

THE COURT: Well –

MR. FRIEDMAN: Your Honor, under the Pennsylvania –

THE COURT: Also they did sign the ordinance. You have to assume they signed in all fairness, you have to assume they read the ordinance before they signed it.

MR. FRIEDMAN: They didn't sign the ordinance, only the council president signed the ordinance.

THE COURT: He was authorized to sign.

MR. FRIEDMAN: Yeah, he signed it. Under the Pennsylvania Constitution there can be a higher standard imposed. And I would suggest under the case law that Pennsylvania places a great deal of importance on First Amendment rights, on the freedom of expression. It's enacted as part of the Declaration of Rights over two

hundred years ago when they enacted the [p. 31] Pennsylvania Constitution. And I would suggest in construing the Pennsylvania Constitution that you look to the most well reasoned opinion in their entire case, and that is Justice White's opinion in *Barnes*, the dissenting opinion which was joined by Justices Marshall, Blackmun and Stevens. And if you read it, you'll see that it's the opinion that makes sense. In that opinion they say that nude dancing is protected. The majority agreed with that as well. And they go on to say.

THE COURT: I can see. Don't you think I'll read it?

MR. FRIEDMAN: Yes, I don't have any doubt that you've read it already several times.

THE COURT: I have.

MR. FRIEDMAN: But nude dancing is protected by the freedom of expression.

The problem that the City of Erie has is not with nude dancing, the problem that they have is the message that it communicates because that becomes obvious – and when you read the dissent, that's what they talk about. It becomes obvious because the City is not concerned if there is [sic] pasties involved, and the City tells us, "Well, we are not concerned if somebody in "Equus" appears nude or somebody in "Hair" appears [p. 32] nude." What is it about nude dancing that bugs them so much? I tell you the only thing it can be is that it conveys a message that they don't like. And that's what the dissenters say, "You can't go in and legislate to stop a message." That's the only thing they're trying to do is stop the message

that nude dancing conveys, and that, I would suggest to the Court, is the interpretation that the Court can and should give under the Pennsylvania Constitution.

Your Honor, I don't think there is any question but that that ordinance is Constitutionally overbroad. The 6th Circuit said, – the City has alluded to it because they keep saying, "Well, maybe that's what it says, but we won't really enforce it that way. Trust us, we will do what's right for the people. We know what's best for you people." That's what they're saying. When they say that, they're admitting to the Court that it's overbroad when the ordinance goes through and says "nudity is prohibited." It's prohibited for a woman to nurse a child over two years of age. She is going to be arrested for that?

The ordinance clearly applies to the Playhouse, clearly applies to the Roadhouse. There is no way you can argue against that by going back and saying, "Well, there is a severability provision that says if it's not [p. 33] constitutional." It doesn't. It's not going to be applied that way. Well, what does that mean? I mean, that really begs the question. The ordinance says it's a violation to appear in a state of nudity.

THE COURT: What right do I have to modify the ordinance?

MR. FRIEDMAN: That's what the City wants you to do.

THE COURT: The Court does not – under case law do I have right to do that?

MR. FRIEDMAN: There is a Supreme Court case, Your Honor, which I cited in my brief, Justice

Roberts' opinion which says that, "The Court ought not to legislate. The Court's job is not to tinker with statutes." And that case is *Commonwealth versus MacDonald*, Your Honor, it's on page 6 of my brief. The Court – the City wants the Court, I suppose, to come back in and re-write the statute to their liking.

Now, I'm not sure exactly what the Court is supposed to do to do that. Is the Court supposed to go over to City Hall and sit down with the four majority members at a round table and say, "This is what we really want to do, Judge. We know you are a fine Judge and were a lawyer for a lot of years and, Judge, you sit down and write it for us." Where are we supposed to [p. 34] go for an interpretation of the ordinance. The Court's job is not to write ordinances. The Court's job is to interpret it.

The Court has to consider the intent of the members of City Council. Let me read you, Your Honor – there is – I gave you my transcript. Your Honor, as the Court will recall, this ordinance was sponsored by Councilman Thompson. He's really the one that pushed this ordinance through. This is what he said was his intent in doing this ordinance, he says on page 5 of the transcript that: "The City is merely reaffirming state laws." More importantly, this is what he says, he says, "This ordinance specifically talks about indecent behavior, lewd and immoral. And if you look up lewd in the dictionary, it's lust, vulgar, worthless, obscene. And obscene if you look it up in the dictionary says it's indecent, repulsive, disgusting, and sexually exciting. That's what we're talking about. That's what we're prohibiting. We're not prohibiting nudity, we are prohibiting nudity when it's used in a lewd and immoral fashion." That's not what the ordinance says,

but that's what the sponsor intended when he proposed this ordinance.

Now, Your Honor, if you are going to sit down as a Judge and draft a new ordinance and consider the intent [p. 35] of the sponsor of this ordinance, Mr. Thompson, then I would suggest to the Court that what he intended to do and what he said was to reaffirm the State Obscenity Statute and to create a statute which he says does not just prohibit nudity, it prohibits nudity when it's used in a lewd and immoral fashion. If the Court is going to sit down and redraft this, I would like to know what the Court is going to base it on? Who is going to have input into it? And is the Court going to be a legislature, and if so, and if the Court adopts it, who are we as litigants going to go before for an interpretation? Who is going to rule on it? And that's what Justice Roberts talks about in his opinion. He says it's up to the Court's [sic] to interpret, not legislate.

Your Honor, the final issue which I would like to address this afternoon is the preemption question, and I'll allude to it. The State enacted an Obscenity Statute, and that's at Title 18, Section 5903. The Obscenity Statute was amended in 1990 to include subsection (a)(5) which applies to performances where there is nudity involved. The word "performance" was specifically added to the statute in 1990.

The Obscenity Statute applies to nude dancing under certain circumstances, and that is when the [p. 36] dancing is obscene as defined by the statute. The City cannot enact an ordinance which is inconsistent with the state Obscenity Statute. The City has relied upon subsection

(k) which says that the City retains power to legislate in this area, but the language of subsection (k) says it has to be consistent with state law.

In addition, under the Third Class City Code the City does not have the power to enact an ordinance which is inconsistent with a state statute. This ordinance is totally inconsistent with the Obscenity Statute because it doesn't have any guidelines. It does – it makes nudity an offense. It does not have the requirements of obscenity as required by the state statute. In addition, the state statute requires a jury trial. The City ordinance does not provide for a jury trial. Under the law it is legally inconsistent. The state Obscenity Statute preempts this ordinance and the ordinance should be invalidated.

Your Honor, this is a highly emotional issue. It's a fascinating legal issue. But the real question is, is the Court going to permit the people to make their own decisions as to what they should do, what they should see, what type of activity they can engage in when that conduct is not obscene, when that conduct [p. 37] is protected by the First Amendment? Is the decision going to be left up to the individual or is it going to be left up to the City of Erie?

Your Honor, I would ask the Court to strike the ordinance. It's unconstitutional under both constitutions and it's been preempted by the state statute. Thank you, Your Honor.

THE COURT: One thing else, Mr. Friedman – again Mr. Karle, there is some question on the rules with a case involving freedom of expression. An opinion should be possibly filed in three to five days, would you

be willing to waive that requirement so I would have the period of time necessary to write a full scale opinion? I think you both want that because this way – otherwise it's going to be a handwritten opinion without much legal definition to it. Do you have any problem with that, Mr. Karle?

MR. KARLE: No, I don't have any problem with that.

THE COURT: Do you have any problem?

MR. FRIEDMAN: No.

MR. KARLE: I think that's to hold a final hearing.

THE COURT: Pardon me?

MR. KARLE: Isn't that where you issue the [p. 38] preliminary injunction or refrain from it if it gives you three days for a final hearing. I think we are beyond that anyway. We waive it.

THE COURT: This way we will waive it.

MR. KARLE: That's fine.

THE COURT: Mr. Karle, or, Mr. Villella, you want to go next?

MR. KARLE: I would like to thank Mr. Friedman for elevating me to the status of the censor for the City of Erie, but unfortunately, I can't agree with his opinion.

THE COURT: He elevated me to the legislature too.

MR. KARLE: I'm not the last word in that regard, and maybe that's how we ended up here, Judge.

THE COURT: Maybe we should consider the source before we take credit for those.

MR. KARLE: Yes, sir. Judge, you indicated that you wanted to talk about or have – entertain or hear argument on the construction of an ordinance. I know Mr. Friedman has cited Justice Roberts' opinion, but we are of the opinion that we are here today, and part of the our [sic] argument – one of our arguments is that as a state court you are obligated to construe legislation to preserve it against constitutional attack and you have to sever any unconstitutional provisions and that [p. 39] is our argument here.

Mr. Friedman alluded to the fact that what's bugging him, or what's bugging the City is the message we are conveying today, or we were conveying, or their clients are conveying. The odd thing about this case, Judge, is we haven't heard one bit of evidence from the plaintiff as to what message they're protecting. Specifically, Mr. Friedman went to great lengths to strike our proposed finding of fact concerning the erotic message, he struck – he stressed we wanted language in the proposed finding of fact that suggests that their clients, through the dancers, are expressing a "message of eroticism." He struck that. He didn't want to make that part of the message – part of the record. What message? What right is he – is being protected here, Judge. He's really advancing, not his case or his client's case, but he's advancing the Playhouse's case, the arts case, the case of those

people that would be performing what I would term high, higher forms of expression.

THE COURT: Excuse me. One thing I never thought of, just now, I was on the Playhouse Board, would that cause any problems with anybody here?

MR. FRIEDMAN: No, Your Honor.

THE COURT: Mr. Karle?

[p. 40] MR. KARLE: No, Judge.

THE COURT: It was quite a few years ago.

MR. KARLE: No, Judge. Now, since the plaintiffs are really essentially asserting the rights of the Playhouse and the Roadhouse and they're concerned with the productions of "Hair," "Equus," that's where we believe the severability clause is important in the statute. If the Court is concerned with those rights, it's not Greg Karle saying we are not going to enforce these – this ordinance –

THE COURT: Isn't it more – Mr. Karle, isn't it more than separating? Don't I actually have to write – this is what bothers me, wouldn't I actually have to write an ordinance saying we have to – I hereby amend the ordinance, "That this ordinance not sever, but not include?" I can't strike words out, I have to actually add my own words and say, "This ordinance does not include 'Equus' or a play sponsored by the Roadhouse or the Playhouse." Isn't that what I have to do?

MR. KARLE: Yeah, Your Honor, and I think you are empowered to do so.

THE COURT: I might say I can knock out language and say this language is not is knocked out because it's unconstitutional. What I'm really having to do is [p. 41] not knock out language, I'm having to insert language, isn't that correct?

MR. KARLE: That's correct, Judge.

THE COURT: Okay.

MR. KARLE: You would be holding that the ordinance is not applied against certain performances.

THE COURT: Okay.

MR. KARLE: Certain expressive conduct.

THE COURT: Okay.

MR. KARLE: That would be our position. And it would be our position that under the case law in Pennsylvania you are perfectly – it's perfectly allowable.

THE COURT: I assume there is [sic] cases in your brief that discuss that?

MR. KARLE: Yes, Judge, the *Hughes* case.

MR. VILLELLA: Several cases.

MR. KARLE: There is a number of cases, Judge.

THE COURT: We just received that so we haven't had a chance.

MR. KARLE: Judge, yes, we have touched on that area in our brief. And if I might, that is one of the distinctions we can draw between this case and the Akron case. When it was ultimate in review, when *Triplett*

– the Akron case was ultimately reviewed by [p. 42] the 6th Circuit, the Court went to great pains, and if I could, Judge, if you bear with me, their language is quite – I'm referring to my brief, Judge, "The *Triplett* Court recognizes the most critical distinction between federal courts and state courts dealing with state and local laws, as previously discussed herein."

The Court in *Triplett*, the 6th Circuit, said, "While loath to find that the Akron public indecency ordinance violates the First Amendment, this Court is unable to supply a limiting construction for the regulation. It is well recognized that federal courts do not rewrite statutes to create constitutionality." That is a critical distinction here. In *Triplett* the Court was handcuffed, they couldn't construe the ordinance.

THE COURT: Are you saying what they said in *Triplett* was the federal court could do it but not the state court?

MR. KARLE: That's correct, Judge. That's correct. As I read the 6th Circuit case in *Triplett*, the language suggested to me is that the Court would love to do it, but can't. And I think that's a real distinction here, that's a real important distinction which really neutralizes the *Triplett* case.

If I can talk about – we obviously disagree as to [p. 43] the impact of the evidence and the tapes – the evidence adduced at the last hearing, which was introduced here, as to the City Council's legislative attempt.

THE COURT: If I could interrupt for a moment.

MR. KARLE: Yes.

THE COURT: Just so you know, I'm not saying I won't do it. I have great hesitancy to change or modify a statute. If you've read my opinions in the last nine years, I've repeatedly stated that I don't want to be a super zoning body, I don't wants [sic] to be a super school board, I don't want to be a super city council. I would have great reluctance – I'm not saying I won't do it. If the law is clear, that's where I generally come from, and I have written numerous opinions that state that.

MR. KARLE: Your Honor, I don't think we are asking for a radical departure. We have language in the severability clause which recognizes First Amendment rights. As I indicated earlier, that's a very elusive concept. How do you detail them? How can you spell them out and enumerate them all? No, you can't. So we have to depend, and sometimes have to depend on the courts for interpretation.

I think the concerns that have been brought out [p. 44] here is that the arts are protected, a higher protected form of expression. I think that the Court could acknowledge that, that protected speech, or that higher form of speech and incorporate that into its – the Court's decision.

THE COURT: Okay, fine. Thank you.

MR. KARLE: If I can, Judge, we were talking about the record and the evidence from last hearing. I don't know, I must have been at a different hearing, because I noted that the record was replete in the council's – from the council meeting with references to secondary effects, most notably, Mr. Bagnoni's opinion. He

was very concerned with what would happen to a neighborhood because of these establishments. He touched on the criminal aspect and the rape aspect, all kinds of issues, all kinds of criminal activity. So we saw a different case, we saw different testimony. And we would like the Court to consider that as – that testimony in support of the secondary effects aspect of our case.

Your Honor, as we have raised earlier, we still see a significant standing issue in this case. Traditionally, a plaintiff may invoke the First Amendment rights of others without those individuals being present in a lawsuit.

[p. 45] In the facial overbreadth area we see a problem with their case. First of all, all we have is Kandyland as a plaintiff. We have heard no testimony from that individual. All we have seen is the pleadings which allude to a commercial – some sort of commercial harm if this ordinance is enacted. We have not heard from any other alleged plaintiffs. We haven't seen any dancers. We haven't heard any dancers – heard from any dancers. We don't know what expression is being affected.

Now, the one exception to standing in facial overbreadth is not allowing standing. I mean, we have alluded to this in our brief, and we touched on this in *Broadrick versus Oklahoma*. And what *Broadrick* stands for is if an area of speech or First Amendment is not a traditional area of speech, but if only conduct is being affected, the plaintiff may not invoke standing or lawsuit on behalf of other plaintiffs not a party to the case. That's their present factual situation, Judge.

THE COURT: I'm having a little trouble with this. May I ask a question, please?

MR. KARLE: Sure, Judge.

THE COURT: Assuming the owner of that establishment says, "I really believe in nude dancing. [p. 46] I think it's something that should be shown." Isn't that a First Amendment right in your mind if he wants to do that? He's not the dancer, but his belief is that that is something that should be shown to the public.

MR. KARLE: Would I say it's pure speech, Judge? No, I would absolutely not say it's pure speech. Is there an issue – is there a possibility that that is some sort of expressive conduct? Perhaps. And that's my point here, Judge, if we are not in the area of pure speech, the plaintiffs can't invoke, they don't have standing to pursue the case on the dancers, the patrons or whoever else that is not a party here.

THE COURT: Well, I have to decide it strictly on the owner. I have no – it can't be decided at this stage on the dancers because they're not parties and not named, and it can't really be decided on the patrons. Looking from the owner standpoint, if he wants to do this and he feels that he wants to express it – it's similar to a nudity camp, could he have a nudity camp if he believes in this? I'm not saying I believe or anything, but this is what he believes, I guess.

MR. KARLE: That's one of the problems in this case, what's the expressive conduct? What's the [p. 47] speech? What is the First Amendment? What's the gravamen of this case, Judge? They haven't enunciated here.

All I can see from the pleadings is there is probably a commercial interest here that is being impacted. There is no other evidence here.

Finally, Judge, this ordinance is constitutional under *Barnes*. I know Phil doesn't like *Barnes*, Phil likes *Triplett*. But the fact of the matter is, Justice White's opinion isn't the law in this case, the majority is. I read the whole situation differently, Judge. I don't see where you have a constitutional right to be nude in public, it doesn't stay [sic] that. Perhaps you have a right to express an erotic message nude, but there is no absolute right to be nude in public. I haven't seen one case on that.

What *Barnes* stands for is that the City can allow – can require a small amount of clothing and that does not impinge on or prohibit the erotic message of a dancer, period.

THE COURT: That's what Souter said, basically.

MR. KARLE: Well, yes, that's correct, Judge, and that's the justice – plurality holds that opinion also. Contrary to Mr. – to Phil's argument that the Pennsylvania Supreme Court may grant some sort of higher right, we don't see it, Judge. There is not one [p. 48] case in Pennsylvania which grants some sort of protected status to nude dancing. There isn't any case. We haven't found any cases.

And finally, the Obscenity Statute, and we have cases – the Obscenity Statute, the Pennsylvania Obscenity Statute does not preempt this area. If you can give me a moment. Mr. Friedman used the term "consistent with this chapter." That, Judge, has been interpreted to mean

that local communities are prohibited from enacting more permissive ordinances.

Judge, this is not a more permissive ordinance, this, naturally, would be stronger. Nonetheless, it doesn't preempt the Obscenity Statute – statute does not preempt our ordinance. I believe the statute, or the case that Mr. Friedman referred to was a pre-*Miller* statute and simply doesn't apply to the present state of the law.

Finally, Judge, we would argue that the *Barnes* case is the prevailing law. If the Court sees fit, it could construe our ordinance and grant to the protected – or to the higher arts the exemption from the ordinance. We just ask that the Court find that the ordinance is valid constitutionally.

THE COURT: Thank you.

MR. VILLELLA: Your Honor, I can supplement a [p. 49] little bit further.

THE COURT: You want to say something?

MR. VILLELLA: A couple things.

THE COURT: Fine, Mr. Villella, we appreciate it.

MR. VILLELLA: If you don't mind, I have a couple things to add.

MR. KARLE: No, go ahead.

MR. VILLELLA: May if [sic] please the Court. Your Honor, you are very concerned with whether or not you have the power to construct or sever – construct or sever statutes. In Pennsylvania you not only have the

power, you have the obligation to. You must look at statutes, interpret and construe and sever when necessary. What you don't have the power to do is what Mr. Friedman is suggesting. We are not asking you to reconstruct statutes or legislation. Of course, you don't have the power to add things to statutes and ordinances to make them apply where they don't apply. If there is a law, for instance, that says you can't wear colored hats, where would I sever the statute? You would say it doesn't apply in the situation XYZ, that's what you do.

THE COURT: Then I'm construing it, Mr. Villella.

MR. VILLELLA: Of course you are.

MR. KARLE: Right.

[p. 50] MR. VILLELLA: That's what you're obligated to do. It says in the Statutory Construction Act as well as in the ordinance you must do that. The courts have – the Pennsylvania Courts have done that repeatedly. In the case, the *First School* case, in which they were dealing with the requirement of no aid to private schools, the Court says, "Well, that does not apply to non-religious private schools, we sever out – we severed out non-religious schools from the provisions even though the provision doesn't say that there was another case as – condemnations as to whether or not you can get delay damages if you are still in possession." If you look at the word "possession," they said "want." This is what they really mean. Otherwise you have an unconstitutional taking of property.

Judge, the First Amendment and other constitutional issues are precisely the reason why you have the Statutory Construction Act and construction and severance language in the legislation. Now for my example here, say you have a law that says you can't wear colored hats on the street on Thursday, whatever. Someone gets smart and says, "I'm wearing a scarf. It's not a hat, it's a scarf." The Court is not empowered to say, "Well, it's [sic] really applies to hats and scarfs." You have to construe a statute so it [p. 51] doesn't reach beyond where it says it reaches.

We are saying to you that the law, the general prohibition of the law may not apply in certain contexts. That's precisely why you are there as a Judge, that's precisely, Judge, the legislators said what they did. Mr. Friedman and Mr. Morton acted like we invented this public nudity regulation in Erie, PA or Akron, Ohio. That we are the only ones dealing with this and that we are a bunch of corn pone folks eating crackers and we have don't know what we are doing.

MR. FRIEDMAN: I won't disagree with that, Your Honor.

THE COURT: Let's keep the remarks –

MR. VILLELLA: Judge, these laws are all over the country. As you can see from our brief, federal courts uphold them, the state courts uphold them, elsewhere. You saw this in a law review from the Dickenson's [sic] Review suggesting an ordinance very similar to ours. As a matter of fact, with even less construction language then [sic] ours.

THE COURT: That was written, I believe, before the Circuit case and *Triplett* came out, if I'm not mistaken.

MR. VILLELLA: Look at – *Triplett* is a case why ours is good and their's [sic] is not. The *Triplett* – that [p. 52] was a federal court, you are a state court, the ordinance did not contain the same types of limiting provisions as ours did, and that federal court declined to exercise any kind of construction or severance. If you don't do that here, if you think there is application that should be severed and you don't sever it you simply throw the whole thing out. You have to look at whether or not you are complying with the Statutory Construction Act and doing what you are supposed to be doing as state court Judge. It's impossible to list – make a list in the ordinance to say, "Well, it doesn't apply here exactly. Here is a list of plays it doesn't apply to" You can't do that. And the federal courts – you'll see the decisions have said that you just can't, you can't.

THE COURT: That's what bothers me. I don't see how I can do it.

MR. VILLELLA: Well then, if you are not sure you can sever out applications of law, it says in the Statutory Construction Act you must sever unconstitutional applications as well as part and portions of law. You must look to where it applies and say where to [sic] doesn't apply here.

THE COURT: Could I say it doesn't cover any theatrics?

[p. 53] MR. VILLELLA: If you say something like that –

THE COURT: If I thought that, wouldn't that be way to [sic] broad, "theatrical performance," and later on instead of Playhouse we have somebody else, a well respecting community puts out a performance; "We are a theater. We can do it because we are a theater." And your interpretation doesn't include theater.

MR. VILLELLA: The language has been suggested to you in the brief as well as in the decisions of the other cases.

THE COURT: Okay.

MR. VILLELLA: As to what you would say as to how the application –

THE COURT: I think we have enough argument on that. Go ahead, move on.

MR. VILLELLA: I think that's really all. Mr. Karle covered it well. Otherwise, if the message – they're saying we can't censor the message if the message is something that entices secondary effects, it promotes prostitution or sexually transmitted diseases. We certainly can and should put at least a small limitation on the transmission of this kind of a message. We have the right to do it. We have the obligation to do it.

THE COURT: Mr. Friedman, you make it very short.

[p. 54] MR. FRIEDMAN: Sure. Your Honor, if you believe that line, then pasties prevents sexually transmitted diseases, that's the cure-all. You put pasties

on and that makes all the difference in the world, if you accept the City's position. That's silliness to say the least.

Your Honor, it bothers me when I hear talk about higher expression. If you live out in Fairview, maybe you are allowed to come in and view "Equus." If you don't and you want to go to see a nude dancer, we don't allow that. You asked Mr. Villella repeatedly what do I put in, and Mr. Villella's position is, "Judge, you'll know it when you see it. It's the higher forms of expression that are protected, not the lower forms." And who is to decide that? Me? You? Mr. Villella? Mr. Karle? Some unknown person? How are you going to write what this person thinks? What are you going to put in use? Mr. Thompson's language lists specific plays. Is Mr. Morton going to come in to you or to Mr. Villella and Mr. Karle and ask them before the play puts on to decide whether this is protected speech; no, this isn't protective speech?

It's a censor board, that's all it is. Your Honor, this was summed up tremendously in the – by the Second Circuit in the *Salem* case in which I cited, [p. 55] which the Supreme Court affirmed. What they said was, "While the entertainment afforded by a nude ballet at Lincoln Center to those who can pay the price may differ vastly in content (as viewed by the judges) or in quality (as viewed by critics), it may not differ in substance from the dance viewed by the person who, having worked overtime for the necessary wherewithal, wants some 'entertainment' with his beer or shot of rye." That's what we are talking, nudity is nudity is nudity, and this says that all nudity is unlawful and it's unconstitutional.

Thank you, Your Honor.

THE COURT: Anybody else have anything to say?

Just for the record and for those people who are here on behalf of their respective clients and the media and so forth, I think all should know this, that the Court in rendering this opinion would not in any way be expressing its opinion on whether he believes or doesn't believe in nude dancing. The question solely before this Court is whether or not the statute is constitutional or whether it's been preempted or for some other reason it's been stricken. The Court must be very circumspect in terms of imposing what it believes in, and it does have strong beliefs at times and to any other statutory instruction.

[p. 56] With that in mind, anything else anybody else wants to put on the record?

MR. FRIEDMAN: Nothing further, Your Honor.

THE COURT: Mr. Villella?

MR. KARLE: No, Judge.

MR. VILLELLA: Nothing. That's all.

THE COURT: We will shoot for three to four weeks getting the opinion out. Thank you very much.

MR. FRIEDMAN: Thank you, Your Honor.

(Whereupon, at 3:50 p.m., the proceedings were concluded.)

[p. 57] CERTIFICATION

I hereby certify that the proceedings and evidence are contained fully and accurately in the notes taken by me on the trial of the above cause, and that this copy is a correct transcript of the same.

/s/ James M. Muscarella
James M. Muscarella, RPR
Official Court Reporter

The foregoing record of the proceedings upon the trial of the above cause is hereby approved, and directed to be filed.

/s/ _____
Hon. George Levin